

**RESTRICTIONS ON CROSS-BORDER
MARKETING AND SELLING OF
FUNDS AND INVESTMENT MANAGEMENT & ADVISORY SERVICES
INTO
THE CAYMAN ISLANDS
PART B
28 July 2026**

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1. BACKGROUND

1.1 Introduction

Please refer to the *Instructions to Counsel* that you have been sent in conjunction with this Part B of the Memorandum.

1.2 Structure of Part B

The questions in Part B of the Memorandum are set out in sections 3 to 11. These sections comprise the **Part B Memorandum Subject Matter**.

1.3 Definitions

Active Marketing	Marketing activities which extend beyond Passive Marketing.
Arranging	Making arrangements for another person to buy, sell or subscribe for a Fund or Investment Management & Advisory Services or passing execution instructions to a third party.
Closed-Ended Fund	A Fund with a fixed number of units or shares which does not offer an investor the opportunity to regularly purchase or sell its units or shares.
cross-border	Where: (a) clients, or prospective clients, are located in your jurisdiction; (b) the OFI is headquartered in a jurisdiction different to your own and either has no licensed office in your jurisdiction or is not carrying out the marketing or selling through any licensed office in your jurisdiction; and (c) employees of the OFI are based in a different jurisdiction to your own and are employed by an entity within the OFI group which is headquartered in a different jurisdiction to your own.
Execution of Orders on Behalf of Clients	Agreeing to conclude agreements to buy or sell one or more financial instruments on behalf of clients.
Fly-In Meeting	Employees of the OFI flying into your jurisdiction to carry out marketing activities.
Fly-Out Meeting	Marketing activities which take place offshore and which are directed at a person who is normally resident in your jurisdiction.
Fund	A collective investment undertaking, with or without legal personality, which raises capital from a number of investors with a view to investing it in accordance with a defined investment policy for the benefit of those investors. For the purposes of this Memorandum, local counsel have been instructed to assume that all Funds are offshore.
Investment Advice	The provision of personal recommendations to a client, either upon its request or at the initiative of the OFI, in respect of one or more transactions relating to financial instruments.

Investment Management & Advisory Services	Investment Advice, Arranging, Portfolio Management and Execution of Orders on Behalf of Clients.
OFI	A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or services and is headquartered in a different jurisdiction to your jurisdiction.
Open-Ended Fund	A Fund with or without legal personality which offers an investor the opportunity to regularly purchase or sell its units or shares.
Part B Memorandum Subject Matter	The contents of sections 3 to 11 of Part B of this Memorandum.
Passive Marketing	Marketing or selling following an unsolicited approach by an investor. May also be known as “reverse-enquiry” or “reverse-solicitation”.
Portfolio Management	Managing portfolios in accordance with mandates given by clients on a discretionary client-by-client basis where such portfolios include one or more financial instruments.
Segregated Managed Account	A contractual arrangement between an investment manager and investor where the investment manager makes discretionary investments into financial instruments or assets through an account owned by the investor.
Single Investor Vehicle	A vehicle, which makes investments into financial instruments or assets and which is prevented by national law, the rules or instruments of incorporation, or any other provision or arrangement of binding legal effect, from raising capital from more than one investor.
UCITS Fund	A Fund which qualifies as an undertaking for collective investment in transferable securities under the UCITS IV Directive (2009/65/EC) and which has been authorised as such in an EEA Member State.

1.4 Executive Summary

Marketing Funds

There are four main restrictions for an OFI to consider in determining whether it is permitted to market/sell a Fund (whether Open-Ended or Closed-Ended) in the Cayman Islands.

- (a) If the OFI commences Carrying on Business in the Cayman Islands or establishes a Place of Business in the Cayman Islands it must comply with the Foreign Company Registration Requirement.
- (b) Further, where any of the marketing/selling involves Securities Investment Business carried on through a Place of Business the OFI has established in the Cayman Islands, the Securities Investment Business Licensing Requirement will be triggered, unless such activity is an Excluded Activity or the OFI is a Non-Registrable Person.

Where an OFI (which is not a Cayman Islands entity of any type) markets a Fund on a cross-border basis from outside the Cayman Islands without establishing a Place of Business or Carrying on Business in the Cayman Islands, even though the marketing/selling of the Fund may fall within the definition of Securities Investment Business, the Foreign Company Registration Requirement would not be triggered and therefore the Securities Investment Business Licensing Requirement would not apply.

In addition, if the activity undertaken involves or is deemed to involve Offering the Fund to the Public in the Cayman Islands, it is necessary to consider the following restrictions:

- (c) the Mutual Funds Licensing Requirement where the activity relates to non-Cayman Islands Open-Ended Funds; and
- (d) the Private Funds Registration Requirement where the activity relates to non-Cayman Islands Closed-Ended Funds.

Investment Management & Advisory Services (IMAS)

Passive or Active Marketing/selling of IMAS is permitted provided that if the OFI commences Carrying on Business in the Cayman Islands or establishes a Place of Business in the Cayman Islands it complies with:

- (a) the Foreign Company Registration Requirement; and
- (b) where any of the Active Marketing/selling involves Securities Investment Business carried on through a Place of Business the OFI has established in the Cayman Islands, the Securities Investment Business Licensing Requirement, unless such activity is an Excluded Activity or the OFI is a Non-Registrable Person.

Where an OFI (which is not a Cayman Islands entity of any type) markets/provides IMAS on a cross-border basis from outside the Cayman Islands without establishing a Place of Business or Carrying on Business in the Cayman Islands, even though the marketing/provision of the IMAS may fall within the definition of Securities Investment Business, the Foreign Company Registration Requirement would not be triggered and therefore the Securities Investment Business Licensing Requirement would not apply. The Mutual Funds Licensing Requirement and the Private Funds Registration Requirement may still be relevant if the activity undertaken involves or is deemed to involve Offering the Fund to the Public in the Cayman Islands.

Segregated managed accounts, single investor vehicles and family office undertakings

The marketing and sale of interests in these vehicles by an OFI to investors in the Cayman Islands is subject to the same requirements as apply to the marketing and provision of IMAS as set out above.

Defined Terms (for the purposes of this executive summary):

Carrying on Business for the purposes of the **Foreign Company Registration Requirement** includes, without limitation, offering by electronic means services and subsequently supplying real or personal property, services or information from a Place of Business in the Cayman Islands or through an internet service provider or other electronic service provider (e.g. a server) located in the Cayman Islands.

The term envisages some degree of regularity and continuity. However, there is no definition of "carrying on business" as a matter of Cayman Islands law, so what constitutes "carrying on business" is a question of fact to be determined on a case-by-case basis depending on the nature, regularity and continuity of the activities. There is no guidance on the level of business activity that would meet the "regularity and continuity" threshold.

In March 2024, the Cayman Islands Court of Appeal held that whether or not a lender is "carrying on business" in the Cayman Islands is a question of fact to be determined on a case-by-case basis and that the conduct in question must occur on a repeated or continuous basis.

Local counsel considers that the following activities would **not** constitute Carrying on Business:

- remote marketing activities, including:
 - marketing by telephone and email communication;
 - marketing via a website provided that the website is not registered in or maintained by an internet service provider in the Cayman Islands; and
 - physical delivery of materials via the post;
- potentially, marketing activities at a one-off or very occasional fly-in meeting(s) (although it would depend on the circumstances; see further at section 8.3 below);
- marketing and selling activities at fly-out meetings; and
- provision of products/services so long as:
 - the OFI does not use a telephone/internet service provider located in the Cayman Islands (for example with a “.ky” suffix) to provide such products/services; and
 - contracts are entered into and performed offshore (including any employees who are providing the services being located offshore).

Conversely, it is more likely that fly-in visits (unless very occasional) would constitute Carrying On Business. However, there is a risk spectrum and the targeting of specific potential customers to solicit business (either remotely or in person) could potentially be sufficient to trigger the test depending on the context. Similarly, if a contract is formed with the recipient of marketing activity and a product/service is subsequently provided from within the Cayman Islands, this is more likely to constitute Carrying on Business. As such, OFIs should ensure that transactions are concluded, and services provided, from outside the Cayman Islands.

CIMA means the Cayman Islands Monetary Authority.

Excluded Activity means those activities that are not considered **Securities Investment Business**. Those activities are listed in Schedule 3 of the **SIB Act**. Accordingly, any person who engages in these activities only (and not in any other activities that comprise Securities Investment Business) will fall outside the scope of the SIB Act and will not be regulated in respect of such investment business. A summary of these activities is as follows, but this is not a substitute for reading Schedule 3 of the SIB Act:

- (a) a person dealing in **Securities** which evidence indebtedness in respect of a loan, guarantee or similar financial accommodation made by such person;
- (b) a company, partnership or trust issuing, redeeming or repurchasing Securities which it has issued;
- (c) dealing in options, futures or contracts for differences where none of the parties are individuals, where the sole or main purpose of the transaction is for risk management purposes in connection with non-Securities Investment Business;
- (d) a company disposing of any of its treasury shares;
- (e) a person dealing in Securities in connection with the disposal of goods or supply of services where the supplier of the goods or services does not hold himself out as dealing in Securities and does not solicit the public to deal in Securities;
- (f) dealing in, arranging deals in Securities, or advising on Securities in the course of any profession or business not otherwise constituting Securities Investment Business where such dealing or advising is an incidental part of such profession or business and is not separately remunerated;
- (g) an employer dealing in Securities in connection with an employee share or pension scheme;
- (h) a company, partnership or trust acting as principal on its own behalf dealing in Securities by applying its proprietary assets; and
- (i) making arrangements for the sole purpose of providing finance to enable a person to deal in Securities.

The scope of the exclusions set out above are narrow, therefore they would be unlikely to apply to the cross-border marketing / selling of a Fund or IMAS in practice.

Foreign Company Registration Requirement means the requirement to be registered as a foreign company in the Cayman Islands pursuant to Part IX of the Companies Act. This requirement would be triggered if an overseas company (such as an OFI) establishes a **Place of Business** or commences **Carrying on Business** in the Cayman Islands. A registered foreign company is not required to have a local presence in the Cayman Islands merely by virtue of its foreign company registration.

High Net Worth Person means a person whose individual net worth is at least US\$975,610 or who has total assets of not less than US\$4,878,049 (or equivalent currency).

Mutual Funds Act means the Mutual Funds Act (2025 Revision), as amended.

Mutual Funds Licensing Requirement means the requirement to register or licence a non-Cayman Islands Open-Ended Fund.

Non-Registrable Person means a person referred to at Schedule 2A of the **SIB Act**, namely:

- (a) a person participating in a joint enterprise with the person carrying on **Securities Investment Business** where the activities constituting such Securities Investment Business are to be carried on for the purposes of or in connection with that joint enterprise;
- (b) the Cayman Islands Stock Exchange, **CIMA** or the Cayman Islands Government or any public authority created by it;
- (c) a person carrying on Securities Investment Business only in the course of acting in any of the following capacities:
 - (i) director;

- (ii) partner;
- (iii) manager of a limited liability company;
- (iv) liquidator (including a provisional liquidator);
- (v) trustee in bankruptcy;
- (vi) receiver of an estate or company;
- (vii) executor or administrator of an estate; or
- (viii) a trustee acting together with co-trustees in their capacity as such, or acting for a beneficiary under the trust,

provided that in each case, such person is not separately remunerated for any of the activities which constitute the carrying on of such Securities Investment Business other than as part of any remuneration such a person receives for acting in that capacity and either:

- (A) does not hold himself out as carrying on securities investment business other than as a necessary or incidental part of performing functions in that capacity; or
- (B) is acting on behalf of a company, partnership or trust that is otherwise licensed or exempted from licensing under the SIB Act.

The scope of the definition set out above is narrow and therefore these options would be unlikely to apply to the cross-border marketing / selling of a Fund or IMAS in practice.

Offering the Fund to the Public: The Mutual Funds Act and the Private Funds Act define "the public in the [Cayman] Islands" as excluding the following:

1. a Sophisticated Person;
2. a High Net Worth Person;
3. the Cayman Islands government or any public authority or a person carrying on **Securities Investment Business** for Sophisticated Persons or High Net Worth Persons;
4. an exempted or ordinary non-resident company registered under the Companies Act, a foreign company registered under Part IX of the Companies Act, or any such company acting as general partner of a partnership registered under the Exempted Limited Partnership Act (2025 Revision), or any director or officer of the same acting in such capacity;
5. a limited liability partnership registered under the Limited Liability Partnership Act (2025 Revision);
6. a limited liability company registered under the Limited Liability Companies Act (2025 Revision); or
7. the trustee of any trust registered or capable of registration under the Trusts Act (2021 Revision) acting in such capacity.

Place of Business means, for the purposes of Part IX of the Companies Act, a place of business that is a registered office, permanent location or deemed permanent location associated with (but not necessarily owned or leased by) the company or other relevant entity.

With regard to the **Securities Investment Business Licensing Requirement**, note that registering as a foreign company in the Cayman Islands pursuant to the **Foreign Company Registration Requirement** will require the foreign company to have a registered office in the Cayman Islands (which must be provided by a licensed

registered office services provider; there is no need to have any other form of local presence merely by virtue of its foreign company registration). Such registered office may be considered a Place of Business through which Securities Investment Business is conducted in the Cayman Islands, even in relation to **Securities Investment Business** not physically conducted in the Cayman Islands. See further at section 7.1 below.

Private Funds Act means the Private Funds Act (2025 Revision), as amended.

Private Funds Registration Requirement means the requirement to register a non-Cayman Islands Closed-Ended Fund (other than a Single Investor Vehicle).

Registered Person means a person referred to at Schedule 4 of the **SIB Act**, namely:

- (a) a group company which carries on **Securities Investment Business** exclusively for one or more companies within the same group;
- (b) a person who carries on Securities Investment Business exclusively for a **Sophisticated Person**, a **High Net Worth Person** or an entity whose investors are either Sophisticated Persons or High Net Worth Persons; or
- (c) an entity which is regulated in respect of Securities Investment Business by a recognised regulatory authority in the country in which the Securities Investment Business is being conducted (this category of Registered Person would not be appropriate if the Securities Investment Business was being conducted in the Cayman Islands).

Please note that registration as a Registered Person may render the directors of such entity subject to the Directors Registration and Licensing Act, 2014, as amended.

Registered Person Filing means the filing that must be made by a **Registered Person**. A Registered Person must register with CIMA using a prescribed form and pay a prescribed registration fee of US\$7,317.07 on filing and the same fee thereafter annually before 15th January, together with submitting an annual declaration at the relevant time. A Registered Person must also:

- (a) have at least two individual or one corporate director(s), partner(s) or manager(s) as the case may be;
- (b) submit CIMA personal questionnaires and certain supporting materials for all directors, shareholders and senior officers (or, in each case, their equivalents); and
- (c) notify CIMA within 21 days of any material change in any information filed with CIMA (this includes the details of all directors, officers, AML officers, shareholders and beneficial owners, along with the applicable structure chart and details of all affiliates of the Registered Person).

The registration form and annual declaration are online filings that must be made via CIMA's portal.

Securities are defined broadly to mean, in effect, any of the following (as more fully described in Schedule 1 to the **SIB Act**): equity interests in a company; limited partnership or unit trust interests; debt instruments; warrants; options; futures; contracts for differences and virtual assets. The definition of Securities includes units in a Fund (including a UCITS Fund).

Securities Investment Business means:

- (a) *Dealing in Securities*
 - (i) Dealing in Securities as an agent.
 - (ii) Dealing in Securities as a principal where the person dealing (that is, entering into a transaction):

- (A) holds himself out as dealing in Securities at prices determined by him generally and continuously rather than in respect of each particular transaction;
- (B) holds himself out as engaging in the business of underwriting Securities; or
- (C) regularly solicits members of the public to deal in Securities and such transaction results from such solicitations.

(b) *Arranging deals in Securities*

Making arrangements with a view to:

- (i) another person dealing in Securities; or
- (ii) a person who participates in the arrangements dealing in Securities.

(c) *Managing Securities*

Managing Securities belonging to another person on a discretionary basis.

(d) *Advising on Securities*

Advising a person on Securities if the advice:

- (i) is given to the person in his capacity as an investor or potential investor; and
- (ii) relates to the merits of dealing in a particular Security or exercising any right conferred by a Security to deal in a Security.

(e) *Managing, marketing or acting as depositary of an EU Connected Fund*

Undertaking any of the following:

- (i) performing investment management functions, comprising at least of risk or portfolio management, for one or more EU Connected Funds as notified to the relevant competent authority of the relevant Member State in accordance with the relevant laws and regulations implementing the AIFMD in the Member State;
- (ii) marketing the shares, trust units or partnership interests of an EU Connected Fund to investors or potential investors in a Member State, as notified to the relevant competent authority of the relevant Member State in accordance with the relevant laws and regulations implementing the AIFMD in the Member State; or
- (iii) performing the function of a depositary for an EU Connected Fund in accordance with the relevant Laws and regulations implementing AIFMD in any Member State.

For the purposes of (e) above, in general terms an "EU Connected Fund" is a fund that is either (A) managed by a person whose registered office is in a Member State and whose regular business is managing alternative investment funds or (B) marketed to investors in a Member State, a "Member State" means a member state of the European Union or a state in the European economic area in which AIFMD has been implemented and "AIFMD" means Directive 2011/61/EU of the European Parliament and of the Council of 8 June 2011 on Alternative Investment Fund Managers and amending Directives 2003/41/EC and 2009/65/EC and Regulations (EC) No 1060/2009 and (EU) No 1095/2010.

Securities Investment Business Licensing Requirement means the requirement to either: (a) hold a licence from CIMA to conduct **Securities Investment Business**; or (b) register with CIMA as a **Registered Person** by making a **Registered Person Filing**. This requirement will only apply where the OFI (i) is incorporated or

registered in the Cayman Islands, including being registered as a foreign company pursuant to the **Foreign Company Registration Requirement**, and (ii) establishes a **Place of Business** in the Cayman Islands through which such OFI carries on Securities Investment Business.

SIB Act means the Securities Investment Business Act (2020 Revision), as amended.

Sophisticated Person means a listed or regulated entity or an experienced investor which invests more than US\$100,000 per transaction.

2. GUIDELINES FOR COMPLETING PART B OF THIS MEMORANDUM

Please check the boxes below to **confirm** you have followed each of these guidelines:

Please **do**:

- (a) let us know if there are upcoming legislative changes in relation to the Part B Memorandum Subject Matter before continuing to complete Part B. If the changes are major, we may ask you to delay work on completion of Part B until the changes are in force; ☒
- (b) confirm that the questions in Part B cover all the issues, requirements, restrictions, exemptions or workarounds that could apply to: (i) the cross-border marketing and sale of Funds or Investment Management & Advisory Services into your jurisdiction and (ii) the cross-border provision of Investment Advice or Arranging into your jurisdiction in connection with Funds or Investment Management & Advisory Services; ☒
- (c) provide **focused answers**, which deal only with issues/requirements/exemptions/conditions that are **relevant to a financial institution** (e.g. bank/securities firm/credit institution/hedge fund/investment fund/pension fund/insurance firm) – please **do not** provide theoretical answers that could never apply in practice to a financial institution; ☒
- (d) ensure that you **answer all of the questions** posed in Part B (please note that certain questions comprise several separate questions, all of which must be answered); ☒
- (e) use the **defined terms** in section 1.3 of this Part B; ☒
- (f) begin answers with **"Yes" or "No"**, where possible, followed up with a **simple and concise** explanation; ☒
- (g) where publicly available free of charge, please provide (i) **a website link to any guidance** (e.g. guidance issued by the competent regulator) referred to in your responses; and (ii) an **English translation** of any such guidance; and ☒
- (h) **complete Appendix 1, 2, 3 and 4 of this Part B**, which pull together all of the required and recommended legends, disclosures, risk factors and other forms of wording to be included in the communications referred to in this Part B. ☒

Please **do not**:

- (i) leave any answer **blank** – if a question is not applicable, please indicate this by stating "N/A" (and provide a brief explanation why it is not applicable); ☒
- (j) **modify** any question or the format of this Part B; ☒
- (k) qualify your answer with **additional factual assumptions** unless agreed with aosphere Limited; or ☒
- (l) **cross-refer** to answers to Part A of this Memorandum. Part A and Part B should be treated as separate standalone documents. ☒

3. SOURCES OF LAW; GUIDANCE; COMPETENT REGULATOR

Questions	Answers
(a) Please list the principal sources of law (whether based on specific legislative statutes, common/case law or equity (where applicable) or civil laws/codes and including constitutional laws) applicable to the cross-border marketing and sale of: (i) Funds; and (ii) Investment Management & Advisory Services, to investors located in your jurisdiction. Please include the date that the relevant law(s) entered into force.	The principal applicable law for Investment Management & Advisory Services in the Cayman Islands in this regard, and indeed generally in respect of the conduct of Securities Investment Business in the Cayman Islands, is the Securities Investment Business Act (2020 Revision), as amended (the SIB Act), and regulations made under it (the Securities Investment Business (Financial Requirements and Standards) Regulations, 2003 and the Securities Investment Business (Conduct of Business) Regulations (2026 Revision)). The provisions of the Companies Act (2026 Revision) as amended (the Companies Act) relating to registration of overseas companies will also be relevant and, in turn, the Local Companies (Control) Act (2025 Revision) may apply in certain circumstances. The Mutual Funds Act relating to the licensing and registration of certain Open-Ended Funds may also be relevant. The Private Funds Act relating to the registration of certain Closed-Ended Funds may also be relevant. The SIB Act, originally enacted in 2001, was implemented in two stages. Certain provisions came into force on August 14th, 2002, with the remainder effected on July 28th, 2003. The SIB Act was materially amended on June 21st, 2019. The Companies Act was originally enacted in 1961 and has been substantially amended since then. The provisions relating to registration of overseas companies were last amended with effect from January 10th, 2013. As instructed pursuant to the assumptions made by us in giving this advice and pursuant to the definition of Funds above, we have not considered the answers to the questions in this Memorandum in the context of Cayman Islands domiciled funds.
(b) Please list any guidance (e.g. bulletins, codes of practice, guidelines, etc.) issued by the competent regulator(s), which is relevant to the subject matter referred to in section (a) above. Please indicate whether guidance has binding (i.e. legally enforceable) or other status.	CIMA publishes rules, statements of principle and statements of guidance which apply either generally across all regulated sectors or specifically to one or more sectors. There is a statement of guidance relating to the marketing activities by regulated entities, titled "Marketing Policies Of Licensees". The statement of guidance is only relevant to entities licensed by CIMA (such as a licensee under the SIB Act). The statement of guidance does not specifically relate to the marketing of financial products and services, but has general application. It states that:

	"The [Cayman Islands Monetary] Authority recognises that it is imperative to generate a positive international image of the Cayman Islands, and to avoid any negative impact on the reputation of the Cayman Islands as a centre in compliance with international regulatory standards." "The [Cayman Islands Monetary] Authority expects all licensees, to refrain from the use of aggressive marketing policies based exclusively, or primarily on confidentiality, or secrecy in order to attract business. The [Cayman Islands Monetary] Authority expects all licensees to demonstrate a high level of responsibility in the marketing of all of their services. The [Cayman Islands Monetary] Authority recognises that the reputation of the jurisdiction is sensitive to the manner in which service providers market their services." In addition, in May 2020, CIMA has published Rules setting out the requirements for contents of marketing materials for mutual funds regulated under the Mutual Funds Act and private funds regulated under the Private Funds Act.
(c) Please provide a website link to the English language version of any such sources of law or guidance referred to in section (a) or section (b) above, if publicly available free of charge.	The relevant legislation and regulations can be found at https://legislation.gov.ky/cms/. CIMA's website, which includes details of all regulated sectors and contains copies of most principal sources of Cayman Islands financial services law and regulations, as well as CIMA's Rules and statements of guidance, can be found at www.cima.ky.
(d) Are there any announced future changes to the laws listed in section (a) above? If so, please: (i) contact us before continuing if the changes are significant; and (ii) provide brief details (including expected date of entry into force and what the anticipated scope of the changes is to the extent relevant).	CFATF The Anti-Money Laundering Regulations (2025 Revision) were amended in 2024. The 2024 amendments covered, among other items, risk assessments, customer due-diligence requirements, record keeping and the enforcement regime. The Monetary Authority (Administrative Fines) (Amendment) Regulations 2020 were introduced in June 2020 and amended in October 2020 and December 2020 to address the recommendations of the Caribbean Financial Action Task Force. The scope of the Monetary Authority (Administrative Fines) Regulations (Revised) (together, the "Administrative Fines Regime") was recently expanded and now empowers CIMA to impose administrative fines on partnerships and any other unincorporated associations. SIB Act Under the SIB Act an individual shall not carry on Securities Investment Business (as defined below) in or from within the Cayman Islands except where the individual is a Non-Registrable Person. Only certain entities will fall within the ambit of the SIB Act. The SIB Act does not apply to certain persons that come to the Cayman Islands to conduct business without establishing a Place of Business (subject to such activity not constituting carrying on business for the purposes of the SIB Act). The SIB Act does not explicitly prohibit "cold calling" (i.e. entering into discussions, correspondence or visiting persons who are not previously known or not expecting

	to be contacted), although such individuals would have to comply with the Immigration (Transition) Act (2022 Revision) and Regulations. However, CIMA has recommended that the SIB Act be amended to prohibit a person from carrying out securities investment business (including engaging in cold calling) without a physical establishment in the Cayman Islands. No changes to the SIB Act have yet been made to implement this recommendation and we would expect wider industry consultation before any such legislative changes are effected. However, this issue is clearly on CIMA's radar and it is possible that the SIB Act may be amended to address it at some point in the future. There has been no development regarding this matter since the previous version of this Memorandum dated July 2025. Separately, the SIB Act will likely be amended in the future to expand the scope of regulatory obligations for Registered Persons, such that more compliance obligations which currently only apply to licensees under the SIB Act will also apply to Registered Persons. The latest draft version of the Securities Investment Business (Amendment) Bill, which includes these proposed changes, was published on 30 April 2026 and it is currently undergoing industry consultation. Cayman AIFMD Regime The Cayman AIFMD Regime comprises: • the Mutual Funds Act; • the SIB Act; • the Mutual Funds (EU Connected Fund (Alternative Investment Fund Managers Directive)) Regulations, 2016; and • the Securities Investment Business (EU Connected Fund (Alternative Investment Fund Managers Directive)) Regulations, 2016. The Cayman AIFMD Regime has been designed to provide an opt-in, AIFMD-like regime in Cayman to assist with Cayman's approval as an eligible jurisdiction for the extension of the marketing "passport" available under AIFMD to non-EU countries (Third Countries). The passporting regime, once fully in place, will provide for the possibility of managers of alternative investment funds based in Third Countries (Third Country Funds) being permitted to market the Third Country Funds across all EU jurisdictions on a passport basis after registration in one EU country. It remains unclear as to when or if this third country passporting regime will be implemented.
(e) Please provide the name of the competent regulator(s) .	The Cayman Islands Monetary Authority.

(f)	Please provide a link to the competent regulator's website (if any) – the English language version if available.	www.cima.ky
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4. [SECTION INTENTIONALLY LEFT BLANK]

5. PASSIVE MARKETING (REVERSE-ENQUIRY)

Questions	Answers
(a) Is marketing/selling of a Fund (whether Open-Ended or Closed-Ended) permitted following an unsolicited approach by an investor to an OFI?	Yes, subject to: (a) the OFI not establishing a Place of Business or Carrying on Business (please see section 7.1(a) for a definition of these terms) in the Cayman Islands as a result; and (b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI establishes a Place of Business in or is deemed to be Carrying On Business in the Cayman Islands as a result of the marketing/selling a Fund, it would be required to register as a foreign company under Part IX of the Companies Act, and in turn (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business (as defined in section 7.1(a)) through a Place of Business the OFI has established in the Cayman Islands and requires a licence under the SIB Act or to be registered as a Registered Person (as defined in section 7.1(a)) under the SIB Act, unless such an activity is an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act. See Section 7.1(a) for more detail. Mutual Funds Licensing Requirement In addition, the OFI may need to give consideration to the Mutual Funds Act in respect of the Open-Ended Fund(s) it markets or sells to an investor. Such a Fund (which for the avoidance of doubt means a non-Cayman Islands Fund) may be regarded as carrying on business in the Cayman Islands under the Mutual Funds Act if it or someone on its behalf (i.e. an OFI) makes an invitation to the public in the Cayman Islands to subscribe for such Fund's equity interests. See section 6.2(c) for analysis on what would amount to an offer to “the public” in this context. Whilst this is primarily a concern for the Fund, an OFI would be well advised to avoid marketing and/or selling such Fund until it was satisfied about the Fund's status under the Mutual Funds Act. The Mutual Funds Act contains a notable exemption in this respect, however, where the equity interests in such Fund are offered to the public in the Cayman Islands by or through an entity licensed under the SIB Act and such equity interests are listed on a CIMA-approved stock

	exchange (examples include the Deutsche Borse in Germany, the London Stock Exchange in the United Kingdom and the New York Stock Exchange and Nasdaq in the United States) or the Fund itself is regulated by a CIMA-approved overseas regulatory authority (examples include BaFin in Germany, the Financial Conduct Authority in the United Kingdom and the Securities and Exchange Commission in the United States). Private Funds Registration Requirement In addition, the OFI may need to give consideration to the Private Funds Act in respect of the Closed-Ended Fund(s) it markets or sells to an investor. Such a Fund (which for the avoidance of doubt means a non-Cayman Islands Fund) may be regarded as carrying on business in the Cayman Islands under the Private Funds Act if it or someone on its behalf (i.e. an OFI) makes an invitation to the public in the Cayman Islands to subscribe for such Fund's equity interests. See section 6.2(c) for analysis on what would amount to an offer to “the public” in this context. Whilst this is primarily a concern for the Fund, an OFI would be well advised to avoid marketing and/or selling such Fund until it was satisfied about the Fund's status under the Private Funds Act. The Private Funds Act contains notable exemptions in this respect, however, where: (a) such Fund is a Single Investor Vehicle; (b) such Fund is a "non-fund arrangement", such as a joint venture, securitisation vehicle, or pension fund (as set out in more detail in the Schedule to the Private Funds Act); or (c) <u>(i)</u> such Fund is not incorporated or established in the Cayman Islands <u>and</u> <u>(ii)</u> the equity interests in such Fund are offered to the public in the Cayman Islands by or through an entity licensed under the SIB Act, and such equity interests are listed on a CIMA-approved stock exchange (examples include the Deutsche Borse in Germany, the London Stock Exchange in the United Kingdom and the New York Stock Exchange and Nasdaq in the United States) or the Fund itself is regulated by a CIMA-approved overseas regulatory authority (examples include BaFin in Germany, the Financial Conduct Authority in the United Kingdom and the Securities and Exchange Commission in the United States).
Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant): (i) What constitutes a “reverse-enquiry”/ “reverse-solicitation” within your jurisdiction?	There is no statutory definition or regulatory guidance about the meaning of such term in the Cayman Islands. As such there are no specific exemptions or exclusions available based on an activity being in response to a reverse enquiry.

(ii)	Must a "reverse-enquiry"/"reverse-solicitation" relate to a specific Fund or can it be more general?	No. Please see the answer to (i) above.
(iii)	Does it make a difference if there is a pre-existing relationship with the investor?	No. Please see the answer to (i) above.
(iv)	Must each separate transaction with a particular investor be preceded by a "reverse-enquiry"/"reverse-solicitation"?	No. Please see the answer to (i) above.
(v)	Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	No. Please see the answer to (i) above.
(vi)	Does it matter if a third party intermediary made the approach on behalf of the investor?	Yes, it would matter if the intermediary was based in the Cayman Islands, but only to the extent that this would warrant separate analysis of the legal and regulatory compliance of such intermediary in the Cayman Islands.
(vii)	Does the investor need to be a particular type of investor e.g. a professional investor?	N/a, but please see section 5(a) above and 6.2(c) below.
(viii)	Are there restrictions regarding future communications with investors known to the OFI on the basis of a "reverse-enquiry"/"reverse-solicitation"?	No. Please see the answer to (i) above.
(b)	Please provide any applicable practical advice in respect of the "reverse-enquiry" regime in respect of Funds that you think is relevant. For example:	
(i)	are there particular compliance procedures which are advised?	Please see the answer to (a)(i) above. There is no applicable practical advice to add as there is no statutory definition or regulatory guidance about the meaning of such term in the Cayman Islands.
(ii)	are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	Please see (i) above.

(iii)	is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	Please see (i) above.
(iv)	are there any registration/notification/approval/licensing requirements which apply in respect of the OFI following an unsolicited approach regarding a Fund by an investor to an OFI?	Please see (a) above.
(c)	Is marketing/selling of Investment Management & Advisory Services permitted following an unsolicited approach by an investor to an OFI? Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	Please see the answer to 5(a) above which applies equally to the marketing/selling of Investment Management & Advisory Services.
(i)	What constitutes a “reverse-enquiry”/ “reverse-solicitation” within your jurisdiction?	Please see the answer to 5(a)(i) above
(ii)	Must a “reverse-enquiry”/ “reverse-solicitation” relate to a specific Investment Management & Advisory Service or can it be more general?	Please see the answer to 5(a)(i) above
(iii)	Does it make a difference if there is a pre-existing relationship with the investor?	Please see the answer to 5(a)(i) above
(iv)	Must each separate transaction with a particular investor be preceded by a "reverse-enquiry"/"reverse-solicitation"?	Please see the answer to 5(a)(i) above
(v)	Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	Please see the answer to 5(a)(i) above
(vi)	Does it matter if a third party intermediary made the approach on behalf of the investor?	Please see the answer to 5(a)(vi) above

(vii)	Does the investor need to be a particular type of investor e.g. a professional investor?	Please see the answer to 5(a)(i) above and 6.2(c), below.
(viii)	Are there restrictions regarding future communications with investors known to the OFI on the basis of a "reverse-enquiry"/"reverse-solicitation"?	Please see the answer to 5(a)(i) above
(d)	Please provide any applicable practical advice in respect of the "reverse-enquiry" regime in respect of Investment Management & Advisory Services that you think is relevant. For example:	
(i)	are there particular compliance procedures which are advised?	Please see the answer to 5(b) above which applies equally here.
(ii)	are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	Please see the answer to 5(b) above which applies equally here.
(iii)	is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	Please see the answer to 5(b) above which applies equally here.

6. MARKETING/SELLING TO THE PUBLIC

Questions	Answers
6.1 Mutual Recognition of Funds/Passporting Schemes	
(a) Are there any existing or proposed regional arrangements for passporting or mutual recognition of Funds which facilitate the cross border marketing/selling of Funds into your jurisdiction (“Arrangements”)? Examples of such Arrangements would be the Association of Southeast Asian Nations (ASEAN) CIS Framework, the Asia-Pacific Economic Co-operation (APEC) Asia Region Funds Passport, the Hong Kong–China mutual recognition platform for Funds or the Switzerland-Hong Kong mutual recognition scheme.	No - N/a
(b) Please briefly describe any such Arrangements and the relevant rules, guidance or legislation. Please ensure that these sources are included in your responses to section 3 above.	N/a
(c) If the Arrangements are already in force, if possible, please comment on how widely they have been used and whether any Funds have been marketed or sold in your jurisdiction on the basis of the Arrangements. Please give an indication of costs and timescales of using such Arrangements.	N/a
(d) If the Arrangements are not yet in force, if possible, please comment on their current status and expected timeline for implementation.	N/a
(e) Does a Fund have to be both domiciled and managed in one of the participating jurisdictions in order to benefit from the Arrangements, as implemented in your jurisdiction?	N/a
(f) Is any local presence required in your jurisdiction or would the regulator in your jurisdiction need to approve a Fund in any way before marketing / selling can take place there on the basis of the Arrangements?	N/a

(g) Do the Arrangements apply to both Open-Ended and Closed-Ended Funds ?	N/a
(h) Are there any registration/notification/approval/ licensing requirements which apply in respect of the OFI marketing/selling such Funds in accordance with the Arrangements in your jurisdiction?	N/a
(i) Where pursuant to this section 6.1 it is possible to market a Fund pursuant to the Arrangements in your jurisdiction, is it recommended or mandatory to include certain disclaimers/ wording in the written marketing materials for such Fund marketed to the public? If so, please provide recommended wording in Section D of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	N/a
6.2 Funds	
(a) Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of a Fund by an investor which is a member of the public. If applicable, please cross-refer to your answer to section (d) below.	Yes. There is no distinction made in this regard. Please see the answer to 5(a) above regarding the offering of investment interests in an Open-Ended Fund or a Closed-Ended Fund to the public in the Cayman Islands. For the avoidance of doubt we have assumed throughout that "Funds" will be non-Cayman domiciled Funds.
(b) Is active marketing/selling of a Fund (domiciled outside your jurisdiction) to the public in your jurisdiction permitted without restriction ?	Generally speaking, the marketing/selling of a Fund (which is neither formed and registered nor regulated in the Cayman Islands) would be permitted, subject to: Foreign Company Registration Requirement (a) the OFI not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and (b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI established a Place of Business or was deemed to be Carrying On Business in the Cayman Islands as a result of the marketing/selling, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement

	Where the OFI establishes a Place of Business in or is deemed to Carry on Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business (as defined in section 7) through a Place of Business the OFI has established in the Cayman Islands and required a licence under the SIB Act or to be registered as a Registered Person under the SIB Act, unless such an activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act. See Section 7 below for more detail and definitions. Mutual Funds Licensing Requirement The Mutual Funds Act considerations set out in section 5(a) should also be borne in mind, particularly with respect to offering of investment interests to the "public in the Cayman Islands". Private Funds Registration Requirement The Private Funds Act considerations in section 5(a) should also be borne in mind, particularly with respect to offering of investment interests to the "public in the Cayman Islands".
(c) With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not “professional investors”.	Mutual Funds Act and Private Funds Act There is no exhaustive definition of "the public" under Cayman Islands law applicable to the content of this Memorandum, however the Mutual Funds Act and the Private Funds Act define "the public in the [Cayman] Islands" as excluding the following: (1) a Sophisticated Person; (2) a High Net Worth Person; (3) the Cayman Islands government or any public authority or a person carrying on Securities Investment Business for Sophisticated Persons or High Net Worth Persons; (4) an exempted or ordinary non-resident company registered under the Companies Act, a foreign company registered under Part IX of the Companies Act, or any such company acting as general partner of a partnership registered under the Exempted Limited Partnership Act (2025 Revision), or any director or officer of the same acting in such capacity; (5) a limited liability partnership registered under the Limited Liability Partnership Act (2025 Revision); (6) a limited liability company registered under the Limited Liability Companies Act (2025 Revision); or (7) the trustee of any trust registered or capable of registration under the Trusts Act (2021 Revision) acting in such capacity.

SIB Act

The term "members of the public" is used in the SIB Act, but this is only in the context of describing regulated or unregulated activities (i.e. if a certain activity is conducted in respect of members of the public it will be regulated, but the reference to the public is specific to that type of activity). Generally, professional investors are deemed to fall under paragraph 2 of Schedule 4 of the SIB Act ("a **Sophisticated Person**"), and there is a specific exemption for "a **High Net Worth Person**" (meaning a person whose individual net worth is at least US\$975,610 or who has total assets of not less than US\$4,878,049 (or equivalent currency)).

If an OFI is dealing with such sophisticated and/or high net worth persons exclusively, then the OFI would be able to apply for registration as a Registered Person under the SIB Act (rather than requiring a licence under the SIB Act).

For completeness we have included the meaning of "members of the public" below, but this should be read with the above paragraph in mind.

Under the SIB Act, "members of the public" means any person other than a person –

- (a) referred to in paragraphs 1 to 3 of Schedule 4 [of the SIB Act];
- (b) regulated by the [Cayman Islands Monetary] Authority; or
- (c) regulated by a recognised overseas regulatory authority;

Registered Persons

A Registered Person is a person referred to in Schedule 4 (paragraphs 1 to 3) of the SIB Act, which reads as follows:

- (1) a group company which carries on Securities Investment Business exclusively for one or more companies within the same group;
- (2) a person who carries on Securities Investment Business exclusively for one or more of the following classes of persons:
 - (a) a Sophisticated Person;
 - (b) a High Net Worth Person; or
 - (c) a company, partnership or trust (whether or not regulated as a mutual fund) of which the shareholders, unit holders or limited partners are one or more persons falling within (a) or (b)

and who has a registered office or place of business in the Cayman Islands for which services are provided by a person licensed to provide such services.

	(3) A person to whom section 4(1) of the SIB Act applies but who is regulated in respect of Securities Investment Business by a recognised overseas regulatory authority in the country or territory (other than the Cayman Islands) in which the Securities Investment Business is being conducted. If an OFI is a Registered Person it is likely to fall under 2 or 3 above.
(d) If the answer to section (b) above is “No”, are there certain requirements that either the OFI or the Fund (domiciled outside your jurisdiction) can fulfil so that active marketing/selling by the OFI of a Fund to the public in your jurisdiction is permitted? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	N/a, although the Mutual Funds Act and Private Funds Act considerations set out in section 5(a) should be borne in mind.
(i) the impact (if any) of the marketing/sale being undertaken in respect of a Fund regulated in a country other than your jurisdiction. e.g. 1940 Act Fund, UCITS Fund.	Under the Mutual Funds Act and the Private Funds Act, a Fund which is not incorporated or established in the Cayman Islands is exempt from the registration and/or licensing requirements if (i) the equity interests in such Fund are offered to the public in the Cayman Islands by or through an entity licensed under the SIB Act, and (ii) such equity interests are listed on a CIMA-approved stock exchange (examples include the Deutsche Borse in Germany, the London Stock Exchange in the United Kingdom and the New York Stock Exchange and Nasdaq in the United States) or the Fund itself is regulated by a CIMA-approved overseas regulatory authority (examples include BaFin in Germany, the Financial Conduct Authority in the United Kingdom and the Securities and Exchange Commission in the United States).
(ii) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended Fund.	For Open-Ended Funds it is necessary to consider the regime under the Mutual Funds Act whereas for Closed-Ended Funds it is necessary to consider the regime under the Private Funds Act.
(iii) the relevant criteria for determining whether investors are in your jurisdiction for the purposes of determining whether the Fund may be offered to the public.	N/a
(iv) whether it is (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in a Fund to the public in your jurisdiction.	The use of a local intermediary is not necessary but is permitted. In principle a local intermediary may be utilised in order to market/sell interests in a Fund to the public in the Cayman Islands, but such local intermediary would need to comply with Cayman Islands law and regulations. Further, whether the use of an intermediary will avoid an OFI triggering the Foreign Company Registration Requirement is something that needs to be

	determined on a case-by-case basis, depending on the extent to which the OFI may still be Carrying on Business in the Cayman Islands. Note, however, the exemption under the Mutual Funds Act in respect of Open-Ended Funds and the exemption under the Private Funds in respect of Closed-Ended Funds as more particularly described at 5(a) above, pursuant to which the equity interests in such Funds may be offered to the public in the Cayman Islands without triggering the Mutual Funds Licensing Requirement or the Private Funds Registration Requirement (as applicable) if such equity interests are offered by or through a local intermediary licensed under the SIB Act and such equity interests are listed on a CIMA-approved stock exchange or the Fund itself is regulated by a CIMA-approved overseas regulatory authority.
(v) whether there is any requirement as to the language the Fund documentation needs to be in and are there any particular requirements that apply in connection to such documents?	There is no requirement for the Fund documents to be in any particular language.
(e) Where it is possible to market/sell a Fund pursuant to a regime outlined in 6.2(d), please briefly outline any applicable timescales, costs, initial and ongoing filing or other requirements.	N/a
(f) Are there any registration/notification/approval/ licensing requirements which apply in respect of the OFI marketing/selling a Fund to the public in your jurisdiction?	Please see the answer set out at 5(a) above.
(g) Would your answer to section (b) above differ if interests in the Fund being marketed/sold to the public constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No
(h) Where pursuant to section 6.2(d) above it is possible to market a Fund to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for a Fund marketed to the public? If so, please provide recommended wording in Section C of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	Yes, if the Mutual Funds Licensing Requirement or the Private Funds Registration Requirement are triggered (i.e. where the Fund is offered to the public in the Cayman Islands). The rules on the content of marketing materials published by CIMA in May 2020 set out certain requirements applicable to mutual funds registered under the Mutual Funds Act and private funds registered under the Private Funds Act. If the Fund is required to comply with the Mutual Fund Licensing Requirement, the Rule on Contents of Offering Document – Regulated Mutual Funds will apply. If the Fund is required to comply with the Private Fund Registration Requirement, the Rule on Contents of Marketing Materials – Registered Private Funds will apply. We have included the mandatory and recommended wording in Appendix 1 and Appendix 2 for completeness, but

	note that they only apply if the Mutual Funds Licensing Requirement or the Private Funds Registration Requirement are triggered.
6.3 Investment Management & Advisory Services	
(a) Please confirm whether your response to section 5(c) would apply where the unsolicited approach in respect of Investment Management & Advisory Services is made by an investor which is a member of the public. If applicable, please cross-refer to your answer to section (b) or (d) below.	Yes, that answer would apply; this does not change the analysis.
(b) Is marketing/selling of Investment Management & Advisory Services to the public in your jurisdiction permitted without restriction ?	Generally speaking, the marketing/selling of Investment Management & Advisory Services would be permitted subject to: Foreign Company Registration Requirement (a) the OFI not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and (b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI established a Place of Business or was deemed to be Carrying On Business in the Cayman Islands as a result of the marketing/selling of IMAS, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Where the OFI establishes a Place of Business in or is deemed to be Carrying on Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business through a Place of Business the OFI has established in the Cayman Islands and required a licence under the SIB Act or to be registered as a Registered Person under the SIB Act, unless such activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act. See Section 7 below for more detail. Of itself, the marketing/selling of IMAS is likely to constitute Securities Investment Business. Mutual Funds Licensing Requirement If the IMAS also incorporate the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, the Mutual Funds Act considerations set out in section 5(a) should also be borne in mind. Marketing or providing IMAS in relation to a Fund appears less likely to trigger the Mutual Funds Licensing Requirement but ultimately this depends on whether the IMAS is

	deemed to constitute offering the Fund to the public in the Cayman Islands. If it is, then this requirement would be a consideration. Private Funds Registration Requirement If the IMAS incorporate or constitute the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the considerations relating to the Private Funds Act set out in section 5(a) should also be considered.
(c) With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not “professional investors”. Please refer to section 6.2(c) if applicable.	Please see 6.2(c).
(d) If the answer to section (b) above is “No”, are there certain requirements that the OFI can fulfil so that marketing/selling by the OFI of Investment Management & Advisory Services to the public in your jurisdiction is permitted?	N/a. Please see 5(a) and 6.2(b).
(e) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services to the public and are there any particular requirements that apply in connection to such documents?	There is no requirement for written marketing materials to be in any particular language when marketing/providing Investment Management & Advisory Services to the public.
(f) Where pursuant to section 6.3(d) above it is possible to market/sell Investment Management & Advisory Services to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials?	We would recommend including a form of disclaimer noting that the Investment Manager/Advisor is not regulated in the Cayman Islands and is not licensed or otherwise authorised to be Carrying on Business in or from the Cayman Islands. If the IMAS includes the offering of investment interests in an Open-Ended Fund or a Closed-Ended Fund to the public in the Cayman Islands, the recommended and mandatory wording regarding Funds set out in Section C of Appendix 1 and Appendix 2 (respectively) will also apply. Please see Section C of Appendix 3. If the IMAS triggers the Securities Investment Business Licensing Requirement, such that the OFI is required to obtain a Securities Investment Business licence from CIMA to provide the IMAS, the Securities Investment Business (Conduct of Business) Regulations (2026 Revision) (SIB COB Regulations) and CIMA's Marketing Policies of Licensees (Marketing Policy) will apply to the OFI's written marketing materials.
If so, please provide recommended wording in Section C of Appendix 3 of this Memorandum.	

	Under the SIB COB Regulations, the written marketing materials will need to comply with the following requirements: (1) the fact that the licensee is regulated by CIMA must be disclosed in all advertisements and other documents relating to the licensee's IMAS business; (2) the licensee cannot represent that, because of its status as a licensee, it is indemnified by CIMA or by the Cayman Islands government against any loss or damage which may arise from its conduct of the IMAS as a licensee; (3) the written marketing materials shall not contain or include: (a) any misleading statement, promise or forecast; (b) any statement, promise or forecast which the licensee does not have reasonable grounds for believing it to be true at the time of issuing the marketing materials; (c) any statement of opinion which the licensee does not have reasonable grounds for believing to be the honestly held opinion of that person at the time of issuing the marketing materials; (d) a misleading statement about the scale of activities of, or any of the activities of, or the resources of or available to, the licensee or the licensee's group of companies; (e) a statement relating to past performance unless (i) the basis on which such performance is measured is clearly stated and the presentation is not misleading; (ii) it is accompanied by a warning that past performance is not necessarily a guide to future performance; and (iii) the past performance is relevant to the investment or the services offered by the licensee; (f) any statement relating to taxation benefits unless the licensee is properly qualified to show what it means in practice and to whom such benefits apply; or (g) a comparison with other forms of investment unless the basis of comparison is clearly stated and the comparison is fair; (4) the content and format of any written marketing materials shall not: (a) be so designed as to be likely to be misunderstood; (b) be so designed as to disguise the significance of any warning statement or information which is required to be included or provided under the SIB COB Regulations;
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	(c) be presented in such a way that it is not clearly identifiable as an advertisement; or (d) signify in any way that the marketing materials are approved by CIMA; (5) the written marketing materials shall: (a) identify the licensee, including a full address; and (b) disclose the identity of the licensee's regulator; (6) the written marketing materials shall specify all of the terms and conditions that attach to the relevant investment (unless there is information as to how a written statement of all the terms and conditions can be obtained); (7) the written marketing materials shall disclose any special areas of risk relating to the relevant investment; and (8) the written marketing materials shall not specify a rate of return without specifying how it is calculated and such return or calculation shall include any element that involves any potential reduction of the investor's capital. Under the Marketing Policy, CIMA requires that all licensees refrain from using aggressive marketing policies based exclusively or primarily on confidentiality or secrecy in order to attract business. While there are no specific requirements, CIMA expects all licensees to demonstrate a high level of responsibility in the marketing of all of their services.
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7. PRIVATE PLACEMENT REGIME

Questions	Answers
7.1 Private Placement Regime (Funds) (a) Is active marketing/selling by an OFI of interests in a Fund (whether Open-Ended or Closed-Ended) to investors in your jurisdiction via a private placement regime permitted? In preparing your answer, please <u>ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	The Cayman Islands does not have a private placement regime. Active marketing/selling of Funds is only permitted in compliance with the Foreign Company Registration Requirement and where any of the active marketing/selling involves Securities Investment Business, the Securities Investment Business Licensing Requirement. Please also note our answer to section 8.1(a) that whereas active marketing in itself will not necessarily constitute Carrying on Business and trigger the Foreign Company Registration Requirement and/or the Securities Investment Business Licensing Requirement, if a contract were formed with the recipient of the marketing activity it makes it more likely that one or both of the aforementioned requirements will be triggered. Foreign Company Registration Requirement Under Part IX of the Companies Act an overseas company which establishes a Place of Business or commences Carrying On Business within the Cayman Islands is required to be registered as a foreign company in the Cayman Islands. "Carrying on Business" includes, without limitation, offering by electronic means services and subsequently supplying real or personal property, services or information from a place of business in the Cayman Islands or through an internet service provider or other electronic service provider located in the Cayman Islands. Carrying on business requires some degree of regularity and continuity but it should be noted, however, that there is no definition of "carrying on business" as a matter of Cayman Islands law, so what constitutes "carrying on business" is a question of fact to be determined on a case-by-case basis depending on the nature, regularity and continuity of the activities. There is no guidance on the level of business activity that would trigger the "regularity and continuity" threshold. We are of the view that marketing by telephone, email communication and physical delivery of materials into the Cayman Islands via the post (i.e. remote marketing activities) by an OFI from outside the Cayman Islands would not constitute Carrying on Business within the Cayman Islands, however, it is more likely that fly-in visits (unless very occasional) would. However, there is a risk

spectrum and the targeting of specific potential customers to solicit business (either remotely or in person) could potentially be sufficient to trigger the test depending on the context. Other examples of activities which might bring an OFI within scope of the licensing/registration requirements are:

- using a Cayman Islands internet service provider (for example with the “.ky” suffix); and/or
- entering into or performing contracts in the Cayman Islands.

Note however that whereas marketing in itself will not necessarily constitute Carrying on Business, if a contract were formed with the recipient of the marketing activity and a Product/Service is subsequently provided from within the Cayman Islands, this could constitute Carrying on Business. As such, the OFI should ensure the transaction is concluded, and the service provided, from outside the Cayman Islands.

For the purposes of Part IX of the Companies Act a Place of Business is a registered office, permanent location or deemed permanent location in the Cayman Islands associated with (but not necessarily owned or leased by) the company.

Consequently, a company which establishes a Place of Business in the Cayman Islands will, contravene the following if it does not register under the Companies Act:

- (a) the Foreign Company Registration Requirement under the Companies Act; and
- (b) if the activity it is conducting constitutes Securities Investment Business carried on through a Place of Business established by it in the Cayman Islands, the SIB Act (if not registered/licensed under the SIB Act).

Mutual Funds Licensing Requirement

In the context of an Open-Ended Fund, the Mutual Funds Act considerations set out in section 5(a) should also be borne in mind. In practice it may be possible to avoid triggering the Mutual Funds Licensing Requirement, where the offering is made to a limited number of persons such that it falls outside the scope of an “offer to the public in the Cayman Islands”. See section 6.2(c) for analysis on the concept of “the public” in this context.

Private Funds Registration Requirement

In the context of a Closed-Ended Fund, the Private Funds Act considerations set out in section 5(a) should also be borne in mind. In practice it may be possible to avoid triggering the Private Funds Registration Requirement, where the offering is made to a limited number of persons such that it falls outside the scope of an “offer to the public in the Cayman Islands”. See section 6.2(c) for analysis on the concept of “the public” in this context.

Registration of Foreign Partnerships

Under the Exempted Limited Partnership Act (2025 Revision) it is possible for certain foreign partnerships to be registered in the Cayman Islands (i.e. a partnership equivalent of a foreign company registering under Part IX of the Companies Act).

A foreign partnership (whether registered or not) would fall within the scope of the SIB Act if such foreign partnership has established a Place of Business in the Cayman Islands through which Securities Investment Business is carried on from (section 4(1)(b) of the SIB Act). It is possible that the SIB Act will be amended in the future to include foreign partnerships registered in the Cayman Islands as persons to which the SIB Act specifically applies, whether or not they fall within section 4(1)(b) of the SIB Act.

If a corporate OFI currently has an office or branch in the Cayman Islands, the OFI will already be registered as a foreign company in the Cayman Islands pursuant to the Companies Act. As a result, the SIB Act will be applicable to the OFI in respect of such office or branch.

Securities Investment Business Licensing Requirement

Where the OFI establishes a Place of Business or is deemed to Carry on Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether the marketing/sale of Funds (whether Open-Ended or Closed-Ended) would potentially constitute "Securities Investment Business" carried on through a Place of Business the OFI has established in the Cayman Islands, which is regulated by the SIB Act.

Application

The SIB Act applies to:

- (a) individuals;

- (b) any entity that:
- (i) is -
 - (1) a company incorporated under the Companies Act;
 - (2) a general partnership established under the Partnership Act (2025 Revision);
 - (3) a limited partnership established under the Partnership Act (2025 Revision);
 - (4) an exempted limited partnership established under the Exempted Limited Partnership Act (2025 Revision);
 - (5) a foreign company registered under Part IX of the Companies Act;
 - (6) a limited liability company formed and registered under the Limited Liability Companies Act (2025 Revision);
 - (7) a limited liability partnership formed and registered under the Limited Liability Partnership Act (2025 Revision);
 - (ii) has established a Place of Business in the Cayman Islands through which such activities are carried on.

No entity to which the SIB Act applies may carry on or purport to carry on Securities Investment Business in the Cayman Islands unless that entity holds a licence granted under the SIB Act, is registered as a Registered Person under the SIB Act or is exempt from holding a licence or registration. Licensees under the SIB Act are regulated by CIMA. Registered Persons are registered with CIMA.

Where a non-Cayman entity which is not registered as a foreign company in the Cayman Islands markets interests in a Fund on a cross-border basis from outside the Cayman Islands without establishing a Place of Business through which such entity carries on Securities Investment Business, the Securities Investment Business Licensing Requirement is unlikely to be triggered even where such activity may otherwise constitute Securities Investment Business. However we note that, depending on the degree of such offering, the Foreign Company Registration Requirement may be triggered.

Registering as a foreign company in the Cayman Islands pursuant to the Foreign Company Registration Requirement requires the foreign company to have a registered office in the Cayman Islands (which must be provided by a licensed

registered office services provider; there is no need to have any other form of local presence merely by virtue of its foreign company registration). Such registered office may be considered a Place of Business through which Securities Investment Business is conducted in the Cayman Islands, even in relation to Securities Investment Business not physically conducted in the Cayman Islands.

However, in circumstances where an OFI:

- triggers the Foreign Company Registration Requirement e.g. because it is Carrying On Business in the Cayman Islands, but *not* in connection with Securities Investment Business; and
- carries on Securities Investment Business from *outside* of the Cayman Islands,

our view is that the Securities Investment Business Licensing Requirement is not triggered because the OFI would not be deemed to have established a Place of Business in the Cayman Islands *through which it carries on Securities Investment Business*.

For completeness, we note that the SIB Act is not completely clear on this point. However our view is the prevailing industry view in the Cayman Islands.

Under the SIB Act, **Securities Investment Business** is defined as:

(1) *Dealing in securities*

- (a) Dealing in securities as an agent.
- (b) Dealing in securities as a principal where the person dealing (that is, entering into a transaction):
 - (i) holds himself out as dealing in securities at prices determined by him generally and continuously rather than in respect of each particular transaction;
 - (ii) holds himself out as engaging in the business of underwriting securities; or
 - (iii) regularly solicits members of the public to deal in securities and such transaction results from such solicitations.

(2) *Arranging deals in securities*

Making arrangements with a view to:

	(a) another person dealing in securities; or (b) a person who participates in the arrangements dealing in securities. (3) <i>Managing securities</i> Managing securities belonging to another person on a discretionary basis. (4) <i>Advising on securities</i> Advising a person on securities if the advice: (a) is given to the person in his capacity as an investor or potential investor; and (b) relates to the merits of dealing in a particular security or exercising any right conferred by a security to deal in a security. (5) <i>Managing, marketing or acting as depositary of an EU Connected Fund</i> Undertaking any of the following: (a) performing investment management functions, comprising at least of risk or portfolio management, for one or more EU Connected Funds as notified to the relevant competent authority of the relevant Member State in accordance with the relevant laws and regulations implementing the AIFMD in the Member State; (b) marketing the shares, trust units or partnership interests of an EU Connected Fund to investors or potential investors in a Member State, as notified to the relevant competent authority of the relevant Member State in accordance with the relevant laws and regulations implementing the AIFMD in the Member State; or (c) performing the function of a depositary for an EU Connected Fund in accordance with the relevant Laws and regulations implementing AIFMD in any Member State. For the purposes of (5) above, in general terms an "EU Connected Fund" is a fund that is either (A) managed by a person whose registered office is in a Member State and whose regular business is managing alternative investment funds or (B) marketed to investors in a Member State, a "Member State" means a member state of the European Union or a state in the European economic area in which AIFMD has been implemented and "AIFMD" means Directive 2011/61/EU of the European Parliament and of the Council of 8 June 2011 on Alternative
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Investment Fund Managers and amending Directives 2003/41/EC and 2009/65/EC and Regulations (EC) No 1060/2009 and (EU) No 1095/2010.

Under the SIB Act, "securities" is defined broadly to mean, in effect, any of the following (as more fully described in Schedule 1 to the SIB Act): equity interests in a company; limited partnership or unit trust interests; debt instruments; warrants; options; futures; and contracts for differences. The definition of securities includes units in a Fund (including in a UCITS Fund).

There is no distinction made between marketing and selling for the purposes of ascertaining whether the activity constitutes Securities Investment Business. Whether an activity constitutes Securities Investment Business is a question of fact.

The four services comprising Investment Management & Advisory Services (i.e. Investment Advice, Arranging, Portfolio Management and Execution of Orders on Behalf of Clients) would all constitute Securities Investment Business.

Excluded Activities

Certain activities are not considered Securities Investment Business. Those activities are listed in Schedule 3 of the SIB Act (**Excluded Activities**). Accordingly, any person who engages in these activities only (and not in any other activities that comprise securities investment business) will fall outside the scope of the SIB Act and will not be regulated in respect of such investment business. A summary of these activities is as follows, but this is not a substitute for reading Schedule 3 of the SIB Act:

- a person dealing in securities which evidence indebtedness in respect of a loan, guarantee or similar financial accommodation made by such person;
- a company, partnership or trust issuing, redeeming or repurchasing securities which it has issued;
- dealing in options, futures or contracts for differences where none of the parties are individuals, where the sole or main purpose of the transaction is for risk management purposes in connection with non-securities investment business;
- a company disposing of any of its treasury shares;
- a person dealing in securities in connection with the disposal of goods or supply of services where the supplier of the goods or services does not hold

	themselves out as dealing in securities and does not solicit the public to deal in securities; • dealing in, arranging deals in securities, or advising on securities in the course of any profession or business not otherwise constituting securities investment business where such dealing or advising is an incidental part of such profession or business and is not separately remunerated; • an employer dealing in securities in connection with an employee share or pension scheme; • a company, partnership or trust acting as principal on its own behalf dealing in securities by applying its proprietary assets; and • making arrangements for the sole purpose of providing finance to enable a person to deal in securities. The scope of the exclusions set out above is narrow and therefore they would be unlikely to apply to the cross-border marketing / selling of a Fund or IMAS in practice. Registered Persons In addition, certain persons who fall within one of the registered persons categories under the SIB Act (which are set out in Schedule 4 of the SIB Act) also do not require a licence to conduct Securities Investment Business provided they register with CIMA as a Registered Person (Registered Person). Registered Person means a person referred to at Schedule 4 of the SIB Act, namely: (a) a group company which carries on Securities Investment Business exclusively for one or more companies within the same group; (b) a person who carries on Securities Investment Business exclusively for a Sophisticated Person, a High Net Worth Person or an entity whose investors are either Sophisticated Persons or High Net Worth Persons; or (c) an entity which is regulated in respect of Securities Investment Business by a recognised regulatory authority in the country in which the Securities Investment Business is being conducted (this category of excluded person would not be appropriate if the Securities Investment Business was being conducted in or from within the Cayman Islands).
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Registration as a Registered Person may render the directors of such entity subject to the Directors Registration and Licensing Act, 2014, as amended. If you would like us to provide further information about this law please let us know.

If the activities to be conducted will be activities that constitute "regulated activities" under the SIB Act (i.e. no Schedule 3 exemption applies) the next steps would be to ascertain (a) whether any of the categories of Non-Registrable Person under Schedule 2A of the SIB Act would apply; and (b) if none of the categories of Non-Registrable Person under Schedule 2A of the SIB Act would apply, whether registration as a Registered Person under Schedule 4 of the SIB Act would apply. This is not dependent on the type of products or services being provided, but more the manner in which, and to whom, such products or services are provided.

Registered Person Filings

Persons falling within one of the categories of Registered Persons set out above must file an application in a prescribed form and pay a fee initially on filing and thereafter annually before 15th January each year, along with submitting an annual declaration.

The registration form and annual declaration are online filings that must be made via CIMA's portal.

Non-Registrable Persons

The following persons are regarded as non-registrable persons under the SIB Act and do not require either licensing or registration under the SIB Act (**Non-Registrable Persons**):

- (a) a person participating in a joint enterprise with the person carrying on Securities Investment Business where the activities constituting such Securities Investment Business are to be carried on for the purposes of or in connection with that joint enterprise;
- (b) the Cayman Islands Stock Exchange, CIMA or the Cayman Islands Government or any public authority created by it;
- (c) a person carrying on Securities Investment Business only in the course of acting in any of the following capacities:
 - (i) director;
 - (ii) partner;

	(iii) manager of a limited liability company; (iv) liquidator (including a provisional liquidator); (v) trustee in bankruptcy; (vi) receiver of an estate or company; (vii) executor or administrator of an estate; (viii) a trustee acting together with co-trustees in their capacity as such, or acting for a beneficiary under the trust, provided that in each case, such person is not separately remunerated for any of the activities which constitute the carrying on of such securities investment business other than as part of any remuneration such a person receives for acting in that capacity and either: (A) does not hold himself out as carrying on securities investment business other than as a necessary or incidental part of performing functions in that capacity; or (B) is acting on behalf of a company, partnership or trust that is otherwise licensed or exempted from licensing under the SIB Act. The scope of the definition set out above is narrow and therefore the above options are unlikely to apply to the cross-border marketing / selling of a Fund or IMAS in practice. In summary, where an OFI (which to avoid doubt is not a Cayman Islands entity and not registered as a foreign entity in the Cayman Islands) markets a Fund on a cross-border basis from outside the Cayman Islands without establishing a Place of Business or being deemed to Carry on Business in the Cayman Islands, even where marketing activities may otherwise constitute Securities Investment Business, the Foreign Company Registration Requirement and in turn the Securities Investment Business Licensing Requirement are unlikely to be triggered.
(i) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended Fund. Where the rules of the private placement regime distinguish between Open-Ended or Closed-Ended Funds, please outline how the rules of your jurisdiction define an Open-Ended or a Closed-Ended Fund.	For Open-Ended Funds it is necessary to consider the regime under the Mutual Funds Act whereas for Closed-Ended Funds it is necessary to consider the regime under the Private Funds Act.

(ii) the impact (if any) of the marketing/sale being undertaken in respect of a Fund regulated in a country other than your jurisdiction e.g. 1940 Act Fund, UCITS Fund.	Under the Mutual Funds Act and the Private Funds Act, a Fund which is not incorporated or established in the Cayman Islands is exempt from the registration and/or licensing requirements if (i) the equity interests in such Fund are offered to the public in the Cayman Islands by or through an entity licensed under the SIB Act, <u>and</u> (ii) such equity interests are listed on a CIMA-approved stock exchange (examples include the Deutsche Borse in Germany, the London Stock Exchange in the United Kingdom and the New York Stock Exchange and Nasdaq in the United States) or the Fund itself is regulated by a CIMA-approved overseas regulatory authority (examples include BaFin in Germany, the Financial Conduct Authority in the United Kingdom and the Securities and Exchange Commission in the United States). For the avoidance of doubt we have assumed throughout that the "Fund" will be a non-Cayman domiciled Fund.
(iii) available exemptions which permit marketing/sale of Funds to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include a discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated. Please comment on both formal "black-letter law" exemptions and accepted practice.	Please see the applicable exemptions/routes which are outlined above at section 7.1(a).
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	Please note the requirements of the Companies Act which are listed above. Any OFI which establishes a Place of Business or commences "carrying on business" within the Cayman Islands is required to be registered as a foreign company in the Cayman Islands and will need to consider whether it is conducting Securities Investment Business through a place of business the OFI has established in the Cayman Islands (see 5(a) above). "Carrying on business" includes offering by electronic means services or information through an internet service provider or other electronic service provider located in the Cayman Islands.
(v) any sensitivities depending on whether the investor is a potential or an existing client.	None.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of a Fund before it can be marketed/sold to investors in your jurisdiction?	No, subject to: Foreign Company Registration Requirement

Please outline what activity will trigger such requirements and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website).	(a) the Fund not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and (b) the Fund not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the Fund established a Place of Business in or was deemed to be Carrying On Business in the Cayman Islands as a result of the marketing/selling, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Where the Fund establishes a Place of Business in or is deemed to Carry On Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business through a place of business the OFI has established in the Cayman Islands and required a licence or to be registered as a Registered Person under the SIB Act, unless such activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act. Please note that in practice if it is the OFI (rather than the Fund) that is looking to market/sell the Fund, it would be the OFI (and not the Fund) that would be conducting Securities Investment Business, so the OFI would need to ensure it complied with the SIB Act (and any other applicable Cayman Islands laws). Mutual Funds Licensing Requirement In respect of Open-Ended Funds, the Mutual Funds Act considerations set out in section 5(a) should also be borne in mind. See also section 6.2(c) for the definition of what would amount to an offering to "the public in the Cayman Islands". The Mutual Funds Licensing Requirement will not be triggered where the activity is structured in such a way that it does not amount as an offer to the public in the Cayman Islands. It should be noted that the obligation to comply with the Mutual Funds Licensing Requirement rests with the Fund, albeit that an OFI is not advised to knowingly permit a breach of the Mutual Funds Act in respect of an Open-Ended Fund that the OFI markets/sells. Failure to comply with the Mutual Funds Licensing Requirement constitutes a "very serious" offence pursuant to the Administrative Fines Regime.
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	Private Funds Registration Requirement In respect of Closed-Ended Funds, the Private Funds Act considerations set out in section 5(a) should also be borne in mind. See also section 6.2(c) for the definition of what would amount to an offering to “the public in the Cayman Islands”. The Private Funds Registration Requirement will not be triggered where the activity is structured in such a way that it does not amount as an offer to the public in the Cayman Islands. As above, the obligation to comply with the Private Funds Registration Requirement rests with the Fund, albeit that an OFI is not advised to knowingly permit a breach of the Mutual Funds Act in respect of an Open-Ended Fund that the OFI markets/sells.
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of an application and the issuance of an approval)	N/a
(ii) Are any fees payable, whether related to the:	N/a (Note that no fees apply specifically to marketing/selling activities. Other fees may apply if the Foreign Company Registration Requirement applies and/or any regulatory and licensing requirements are triggered. Please see section 7.1(a) for more information in this regard.)
(A) initial notification/registration; or	
(B) on an ongoing basis?	
(iii) Please could you provide link to the local regulator's website (even if in local language only) where information and/or notification/approval forms are set out for marketing a Fund via the private placement regime.	N/a
(iv) Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the private placement regime and are there any particular requirements that apply in connection to such documents?	There is no requirement for the Fund documentation to be in any particular language when marketing/selling pursuant to the private placement regime or any other particular requirements (provided no offer is made to the public, in which case see section 6.2(h) for additional requirements).
(c) Are there registration/notification/approval/ licensing requirements which apply in respect of the OFI marketing/selling a Fund in your jurisdiction?	Generally no, subject to:
Please outline the practical steps required to fulfil any such requirements in particular:	Foreign Company Registration Requirement (a) the OFI not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and

(i) please provide a link to relevant forms/information on the relevant regulator's website) (even if in the local language only); and (ii) are there any possible exemptions from such requirements?	(b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI established a place of business in or was deemed to be Carrying On Business in the Cayman Islands as a result of the marketing/selling, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Where the OFI establishes a Place of Business in or is deemed to Carry On Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business through a place of business the OFI has established in the Cayman Islands and required a licence or to be registered as a Registered Person under the SIB Act, unless such activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act. See Section 7(a) above for more detail.
(d) (i) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in a Fund to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	The use of a local intermediary is not necessary but is permitted. In principle a local intermediary may be utilised in order to market/sell interests in a Fund to an investor based in the Cayman Islands, but such local intermediary would need to comply with Cayman Islands law and regulations. Further, whether the use of an intermediary will avoid an OFI triggering the Foreign Company Registration Requirement is something that needs to be determined on a case-by-case basis, depending on the extent to which the OFI may still be Carrying on Business in the Cayman Islands. Note however the exemption under the Mutual Funds Act in respect of Open-Ended Funds and the exemption under the Private Funds in respect of Closed-Ended Funds as more particularly described in Section 5(a) above, pursuant to which the equity interests in such Funds may be offered to the public in the Cayman Islands without triggering the Mutual Funds Licensing Requirement or the Private Funds Registration Requirement (as applicable) if such equity interests are offered by or through a local intermediary licensed under the SIB Act and such equity interests are listed on a CIMA-approved stock exchange.
(A) a licensed third party intermediary;	Please see (d) above.
(B) an unlicensed local third party intermediary; or	Please see (d) above.

(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	Please see (d) above.
(ii) Where the key entity marketing/selling the Fund in your jurisdiction is in compliance with local licensing requirements, is it permitted for the sub-advisor/manager of the Fund to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	This is generally possible, provided that the sub-advisor/manager of the Fund is not deemed to be Carrying on Business in the Cayman Islands and/or does not establish a Place of Business in the Cayman Islands. If the sub-advisor/manager does commence Carrying on Business in the Cayman Islands and/or establishes a Place of Business in the Cayman Islands, the same requirements in respect of the Foreign Company Registration Requirement, and the Securities Investment Business Licensing Requirement will apply. Provided the activity is carried out only with a limited group of investors so that it does not amount to an offer to the public in the Cayman Islands, then the Mutual Funds Licensing Requirement/Private Funds Registration Requirement should not be triggered. See section 6.2(c) for more information.
(e) Are there any other requirements (including any ongoing requirements) in order to comply with the rules/guidance applicable to the private placement regime in your jurisdiction for Funds not dealt with elsewhere in this Part B of the Memorandum? For example are there any particular requirements that apply to a special category of investor in your jurisdiction which an OFI should bear in mind before marketing to such investors (i.e. based upon an investor being an insurance company, a sovereign wealth fund, an endowment, a foundation or a pension fund). Please do not refer to requirements applicable to retail investors which are dealt with in section 6 of this Memorandum.	N/a. Please see 7.1(a) above.
(f) Would your answer to question 7.1 differ if interests in the Fund being marketed/sold constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	N/a, noting 7.1(a) above.
UCITS Funds	
(g) Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of a UCITS Fund.	Yes, confirmed.
(h) Where it is possible to market/sell a Fund pursuant to a regime described in Section 7.1(a) or 6.2(d), would the type of Fund that can be marketed/sold include a UCITS Fund?	The analysis set out in 7.1(a) and 6.2(d) would apply equally to the marketing/sale of a UCITS Fund.

(i)	If the answer to 7.1(h) is “yes”, please briefly outline or cross-refer to the relevant section if the information is contained elsewhere in this Memorandum:	N/a. Please see 7.1(a) above.
(i)	The notification/approval process (if any);	N/a. Please see 7.1(a) above.
(ii)	Timescales;	N/a. Please see 7.1(a) above.
(iii)	Costs, including any fees: (A) initially payable; and (B) payable on an ongoing basis;	N/a. Please see 7.1(a) above.
(iv)	What language does the Fund documentation need to be in;	N/a. Please see 7.1(a) above.
(v)	Whether a local presence is required;	N/a. Please see 7.1(a) above.
(vi)	Whether local agents and/or distributors are required; and	N/a. Please see 7.1(a) above.
(vii)	Initial and ongoing filing requirements.	N/a. Please see 7.1(a) above.
(j)	Where it is possible to market/sell a UCITS Fund pursuant to the regime described in Section 7.1(a) or 6.2(d) in your jurisdiction are there any registration/ notification/ approval/ licensing requirements which apply in respect of the OFI marketing/selling the UCITS Fund in your jurisdiction?	Please see 7.1(c) above.
(k)	Where it is possible to market/sell a UCITS Fund pursuant to a regime described in Section 7.1(a) or 6.2(d) in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording on the written marketing materials. If so, please provide recommended wording in Section A of Appendix 1 of this Memorandum.	We would recommend including a form of disclaimer noting that neither the UCITS Fund nor the OFI are regulated in the Cayman Islands and that they are not licensed or otherwise authorised to be Carrying on Business in or from the Cayman Islands. See Section A of Appendix 1 – written disclaimers

7.2 Sensitivities based on Structure and/or Investment Strategy (Funds)

What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that **only** apply to **certain sorts of Fund** when they are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum in which case please include a cross-reference to the applicable response.

(a) Are there particular **requirements or restrictions** which apply where an OFI wishes to market/sell a Fund in your jurisdiction where such Fund is **structured** as:

Please indicate your response by answering Yes/No for each type of fund structure.

OPEN-ENDED FUND			CLOSED-ENDED FUND		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.		Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No		corporate (unlisted)	No	
corporate (listed on an exchange including an ETF)	No	There are no particular requirements or restrictions which apply to listed Funds. For completeness, we note that an open-ended Fund listed on a stock exchange approved by CIMA may provide an exemption from the Mutual Funds Licensing Requirement. If (i) the equity interests in such Fund are listed on a CIMA-approved stock exchange and (ii) such equity interests are offered to the public in the Cayman Islands by or through an entity licensed under the SIB Act, such Fund would be exempt from the Mutual Funds Licensing Requirement. Please see section 5(a) above.	corporate (listed on an exchange including an ETF)	No	There are no particular requirements or restrictions which apply to listed Funds. For completeness, we note that a closed-ended fund listed on a stock exchange approved by CIMA may provide an exemption from the Private Funds Registration Requirement. If (i) the equity interests in a closed-ended Fund which is not incorporated in the Cayman Islands are listed on a CIMA-approved stock exchange and (ii) such equity interests are offered to the public in the Cayman Islands by or through an entity licensed under the SIB Act, such Fund would be exempt from the Private Funds Registration Requirement. Please see section 5(a) above.
limited partnership	No		limited partnership	No	

contractual	No			contractual	No	
trust	No			trust	No	
sub-fund of umbrella	No			sub-fund of umbrella	No	
master/feeder	No			master/feeder	No	
Fund whose interests/units/shares are tokenised	No			Fund whose interests/units/shares are tokenised	No	
other	No			other	No	

(b) Are there particular additional **requirements or restrictions** which apply where an OFI wishes to market/sell a Fund in your jurisdiction where such Fund's **investment strategy** is listed below, or involves investments in those types listed below.

Please indicate your response by answering Yes/No for each type of fund investment or strategy.

OPEN-ENDED FUND			CLOSED-ENDED FUND		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.		Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No		hedge fund strategy	No	
private equity investments	No		private equity investments	No	
real estate investments	No		real estate investments	No	
infrastructure investments	No		infrastructure investments	No	
debt or equity instruments	No		debt or equity instruments	No	
derivative investments	No		derivative investments	No	
fund of funds strategy	No		fund of funds strategy	No	
environmental, social and governance (ESG) strategy	No		environmental, social and governance (ESG) strategy	No	
crypto asset strategy	No	CIMA has not issued any rules or guidance specifically addressing funds that have an investment strategy of investing in crypto assets.	crypto asset strategy	No	CIMA has not issued any rules or guidance specifically addressing funds that have an investment strategy of investing in crypto assets.
Sharia compliant strategy	No		Sharia compliant strategy	No	

private credit/non-bank lending strategy	No	
other	No	

private credit/non-bank lending strategy	No	
other	No	

7.3 Private Placement Regime (Investment Management & Advisory Services)	
(a) Is it possible for an OFI to actively market/provide Investment Management & Advisory Services to investors in your jurisdiction and, if so, on what basis? Please note that the provision of the Investment Management & Advisory Services of Investment Advice and Arranging are specifically dealt with separately in sections 8.8 and 8.9. It is therefore not necessary to repeat this information here. In preparing your answers <u>please ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Generally yes, subject to: Foreign Company Registration Requirement (a) the OFI not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and (b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI established a Place of Business in or were deemed to be carrying on business in the Cayman Islands as a result of the marketing/selling, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Where the OFI establishes a Place of Business in or is deemed to Carry on Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business through a place of business the OFI has established in the Cayman Islands and required a licence or to be registered as a Registered Person under the SIB Act, unless such activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act. See Section 7.1(a) above for more detail. Mutual Funds Licensing Requirement If the IMAS incorporate the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, the Mutual Funds Act considerations set out in section 5(a)/6.2(c) should also be borne in mind. Private Funds Registration Requirement If the IMAS incorporate or constitute the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the considerations relating to the Private Funds Act set out in section 5(a)/6.2(c) should also be considered.
(i) available exemptions applicable to the marketing or provision of Investment Management & Advisory Services to investors (e.g. based on type of investor, minimum investment amount, small number of	Please see above.

	investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	
(ii)	the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	Please see above.
(iii)	any sensitivities depending on whether the investor is a potential or an existing client.	Please see above.
(b)	Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/providing Investment Management & Advisory Services to investors in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator’s website) plus any possible exemptions from such requirements.	No, subject to: Foreign Company Registration Requirement (a) the OFI not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and (b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI established a Place of Business in or was deemed to be Carrying On Business in the Cayman Islands as a result of the marketing/selling, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Where the OFI establishes a Place of Business in or is deemed to be Carrying on Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business through a place of business the OFI has established in the Cayman Islands and required a licence or to be registered as a Registered Person under the SIB Act, unless such activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act (please note the requirement to make an Exemption Filing). See Section 7.1(a) above for more detail.

	Mutual Funds Licensing Requirement If the IMAS incorporate the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, the Mutual Funds Act considerations set out in section 5(a) should also be borne in mind. Private Funds Registration Requirement If the IMAS incorporate or constitute the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the considerations relating to the Private Funds Act set out in section 5(a) should also be considered.
(c) (i) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/provide Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	This is not necessary but is permitted, although any such local intermediary would need to comply with Cayman Islands law and regulations. In some cases, the local intermediary could conduct marketing activities in relation to services the OFI will then provide from outside of the Cayman Islands. Whether the use of an intermediary will avoid an OFI triggering the Foreign Company Registration Requirement is something that needs to be determined on a case-by-case basis, depending on the extent to which the OFI may still be Carrying on Business in the Cayman Islands. We also note that the exemption under the Mutual Funds Act in respect of Open-Ended Funds and under the Private Funds Act in respect of Closed-Ended Funds as more particularly described in Section 5(a) should be borne in mind in terms of the element that involves use of an appropriate intermediary). Please also see 7.1(d).
(A) a licensed third party intermediary;	Please see above.
(B) an unlicensed local third party intermediary; or	Please see above.
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	Please see above.
(ii) Where the key entity marketing/selling the IMAS in your jurisdiction is in compliance with local licensing requirements, is it permitted for a sub-advisor of an investment strategy e.g. sub-advisor of a Managed Account, to participate in the marketing activities (e.g.	This is generally possible, provided that the sub-advisor/manager of the Fund is not deemed to be Carrying on Business in the Cayman Islands and/or does not establish a Place of Business in the Cayman Islands. If the sub-advisor/manager does commence Carrying on Business in the Cayman Islands and/or establishes a Place of Business in the Cayman Islands, the same requirements in respect of the Foreign

via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	Company Registration Requirement and the Securities Investment Business Licensing Requirement will apply.	
(d) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services pursuant to the routes described in this section 7.3 and are there any particular requirements that apply in connection to such documents?	There is no requirement for the written marketing materials to be in any particular language when marketing/providing Investment Management and Advisory Services pursuant to the routes described in this section 7.3, or any other particular requirements. As per section 6.3(f), if the IMAS triggers the Securities Investment Business Licensing Requirement, the SIB COBS Regulation and the Marketing Policy will apply.	
(e) Are there any other requirements (including any ongoing requirements)?	Please see section 7.3(a) above.	
7.4 Sensitivities based on Investment Strategy (Investment Management & Advisory Services)		
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Investment Strategy when Investment Management & Advisory Services are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum, in which case please include a cross-reference to the applicable response.		
(a) Are there particular additional requirements or restrictions which apply where an OFI wishes to market/provide Investment Management & Advisory Services using the private placement regime in your jurisdiction where the investment strategy is listed below or involves investments in those types listed below Please indicate your response by answering Yes/No for each type of investment or strategy.		
INVESTMENT MANAGEMENT & ADVISORY SERVICES		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No	
private equity investments	No	
real estate investments	No	
infrastructure investments	No	

debt or equity instruments	No	
derivative investments	No	
fund of funds strategy	No	
environmental, social and governance (ESG) strategy	No	
Sharia compliant strategy	No	
private credit/non-bank lending strategy	No	
other	No	

7.5 Investment Management & Advisory Services in respect of Single Investor Vehicles, Segregated Managed Accounts and Family Offices	
This question focuses on investment structures and investment vehicles which may fall <u>outside</u> the definition of Fund.	
(a) Please confirm whether the marketing or provision of the following investment structures/investment vehicles will be caught by the rules applicable to the marketing/provision of Investment Management & Advisory Services in your jurisdiction OR whether other domestic fund or marketing/offering restrictions will apply: (i) a Single Investor Vehicle, which makes investments into financial instruments or assets. (ii) a Segregated Managed Account, which makes investments into financial instruments or assets. (iii) a family office undertaking, which makes investments into financial instruments or assets. If other restrictions or rules apply, please outline (briefly) the position under local law and outline the key exemptions (if any).	The OFI would still need to consider the Foreign Company Registration Requirement and the Securities Investment Business Licensing Requirement. These structures/vehicles are not specifically contemplated by the SIB Act. More information would be required about the specific type of activity, the specific type of securities and the identity of the person for whom the IMAS is being provided would be required in order to assess whether the SIB Act applies. Please see section 7.1(a) above for more detail in this regard. We note that Single Investor Vehicles are generally exempt from the Private Funds Registration Requirement.

8. MARKETING ACTIVITIES

Questions	Answers
The purpose of sections 5, 6 and 7 of Part B of this Memorandum is to identify to whom Funds or Investment Management & Advisory Services can be marketed or sold in your jurisdiction. This section 8 addresses particular requirements which may apply depending on how such products or services are marketed or sold. This section 8 also includes some questions on specific scenarios that may be relevant to an OFI in relation to its cross-border activities.	
8.1 Written Materials	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through the distribution of written marketing materials (whether by email or by physical delivery of documents)?	Generally yes. We do not consider that the distribution of written marketing materials into the Cayman Islands from outside the Cayman Islands would of itself constitute Carrying on Business and therefore trigger both the Foreign Company Registration Requirement and consideration of the Securities Investment Business Licensing Requirement, but if the OFI were already registered as a foreign company under Part IX of the Companies Act then analysis would need to be undertaken about whether the SIB Act applies. In giving this response we assume that the delivery of any such written materials would not constitute a contract with the investor in the Cayman Islands. If a contract were formed this would not of itself trigger the Foreign Company Registration Requirement or the Securities Investment Business Licensing Requirement, but whether such requirements are triggered is a question of fact and should therefore be analysed on a case-by-case basis (the point being that forming such a contract rather than not makes it more likely that one or both of the aforementioned requirements will be triggered). In the context of the completion of an application form and/or subscription document that is sent into the Cayman Islands in respect of a Fund or the provision of IMAS, completed by the investor, and then sent out of the Cayman Islands before such application form and/or subscription document becomes legally binding, it is unlikely that this will trigger the Foreign Company Registration Requirement or the Securities Investment Business Licensing Requirement. Please also note that physical delivery of marketing materials via the post (either originating offshore or onshore) should be distinguished from physical delivery of marketing materials in person (see 8.3). If the distribution of written materials involved the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, consideration would also need to be given to the Mutual Funds Licensing Requirement. See section 6.2(c) for definition of “the public” in this context. If the distribution of written materials involved the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the Private Funds Registration Requirement should also be considered. See section 6.2(c) for definition of “the public” in this context.

Please could you confirm whether your above response would apply to the following types of written marketing materials and, if applicable, note any particular considerations that would apply to that particular type of document:	
(i) offering memorandum (may also be referred to as the “private placement memorandum” or “information memorandum”);	The above responses apply equally to each category of marketing materials referred to below at (i) – (iii) irrespective of whether or not this relates to the marketing/selling of a Fund or Investment Management & Advisory Services.
(ii) marketing presentation (may also be referred to as the "pitch book" or "marketing deck"). Such presentations may include: • Investment strategy/philosophy/process • Biographies of key investment team members • Track record • Case studies of specific investments • Operational infrastructure/list of service providers terms	Please see (i) above.
(iii) tear sheet (may also be referred to as the “fact sheet” or “profile”) Such tear sheets may include: • A brief description of strategy • Summary statistics • Terms • Service providers For the purposes of this question, please assume that the tear sheet includes the name of the Fund.	Please see (i) above.

(b) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials? If so, please specify which type of written marketing materials will require such a disclaimer/warning, e.g. the offering document, presentations, pitch books, emails? Please provide recommended wording in Section A of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum, along with an indication of whether such wording is mandatory or recommended.	We would recommend including a form of disclaimer noting that the Investment Manager/Advisor is not regulated in the Cayman Islands and is not licensed or otherwise authorised to be Carrying on Business in or from the Cayman Islands. See the Appendices for the relevant wording. If the marketing / selling of a Fund does not amount to an "offer to the public in the Cayman Islands" so as to avoid triggering the Mutual Funds Licensing Requirement and the Private Funds Registration Requirement, it is not necessary to use a disclaimer noting that the offering is intended for Sophisticated Persons and/or High Net Worth Persons only, although the inclusion of such disclaimers is recommended. We note that the Rules published by CIMA in relation to the content of marketing materials for Open-Ended Funds subject to the Mutual Funds Licensing Requirement and for Closed-Ended Funds subject to the Private Funds Registration Requirement require certain mandatory disclosures in the Fund's offering documents, where the Mutual Funds Licensing Requirement and the Private Funds Registration Requirement (as applicable) are triggered.
(c) Are there rules regarding the form/content of written marketing materials (including as to how performance data should be portrayed)? Please also consider whether these rules distinguish between the type of investor that such materials will be presented to?	No, provided that in the case of Funds, neither the Mutual Funds Licensing Requirement or the Private Funds Registration Requirement are triggered (in which case see the requirements set out in section 6.2(h)) or, in the case of IMAS, the Securities Investment Business Licensing Requirement is not triggered (in which case, see the requirements set out in section 6.3(f)).
(d) Does the regulator of your jurisdiction require the OFI to retain a record of the recipients of distributed marketing materials?	No, there are no such requirements, provided that the OFI is not regulated by CIMA.
(e) Are there any other considerations that an OFI should bear in mind before disseminating written marketing materials in your jurisdiction?	In general, no. We would however advise that legal advice is sought before disseminating written marketing materials in the Cayman Islands, so that the specific facts and circumstances may be considered to determine whether such dissemination would have any consequences under Cayman Islands law. As it is a question of fact whether such dissemination is likely to trigger the Foreign Company Registration Requirement or the Securities Investment Business Licensing Requirement this should therefore be analysed on a case-by-case basis.
8.2 Telephone	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through marketing by telephone?	Generally yes. We do not consider that telephone marketing/selling of a Fund or Investment Management & Advisory Services to investors in the Cayman Islands from outside the Cayman Islands would of itself constitute "Carrying On Business within the Cayman Islands" and therefore trigger both the Foreign Company Registration Requirement and consideration of the SIB Act (including the Securities Investment Business Licensing Requirement) as set out in 7.1(a) above,

	but if the OFI were already registered as a foreign company under Part IX of the Companies Act then analysis would need to be undertaken about whether the SIB Act applies. If the telephone marketing/selling involved the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, consideration would also need to be given to the Mutual Funds Licensing Requirement. See section 6.2(c) for definition of “the public” in this context. (1) If the telephone marketing/selling involved the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the Private Funds Registration Requirement should also be considered. See section 6.2(c) for definition of “the public” in this context.
(b) Do specific additional requirements or restrictions apply in respect of cold calling of such investors?	No.
(c) Is it recommended or required to make certain oral disclaimers/warnings during the course of the telephone call? If so, please describe the requirements that apply. Please also provide recommended wording in Section B of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum.	No. There are no mandatory requirements in this regard and we are not aware of any customary market practice to include any such disclaimer/warning.
(d) Are there any other considerations that an OFI should bear in mind before conducting telephone calls with prospective investors in your jurisdiction? For example, is it mandatory that such telephone calls be recorded?	In general, no. We would however advise that legal advice is sought before such telephone calls are conducted with prospective investors in the Cayman Islands, so that the specific facts and circumstances may be considered to determine whether such activity would have any consequences under Cayman Islands law. As it is a question of fact whether the making of such telephone calls is likely to trigger the Foreign Company Registration Requirement or the Securities Investment Business Licensing Requirement this should therefore be analysed on a case-by-case basis.
8.3 Fly-In Meetings	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through a Fly-In Meeting? This would include a roadshow where specific information regarding the Fund and/or Investment Management & Advisory Service is presented/discussed.	Generally no, unless the OFI wished to register as a foreign company under Part IX of the Companies Act and then, subject to the specific activity being undertaken, either obtain a licence under the SIB Act or, if appropriate, register as a Registered Person under such law. Our view is that Fly-In Meetings (including a roadshow) for marketing/selling a Fund or IMAS to investors in the Cayman Islands would be likely to constitute "Carrying On Business in the Cayman Islands" and Securities Investment Business, particularly if Fly-In Meetings are conducted on more than one occasion. If the business of the Fly-In Meetings involved the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, consideration would also need to be given to the Mutual Funds Licensing Requirement. If the business of the Fly-In Meetings involved the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the Private Funds Registration Requirement should also be considered.

	What constitutes "carrying on business" is both a matter of fact and degree, depending on the degree of regularity and continuity. Whilst we are of the view that telephone marketing, email communication and physical delivery of materials into the Cayman Islands via the post by an OFI from outside the Cayman Islands would not constitute carrying on business within the Cayman Islands, it is more likely that Fly-In Meetings (unless very occasional) would constitute carrying on business. It would very much depend on the circumstances. Some of the factors in determining if the fly-in visits amounted to carrying on business in the Cayman Islands would be (this is a non-exhaustive list): • the activities conducted at the Fly-In Meetings; • the length of the Fly-In Meetings; • if specific potential customers are targeted at the fly-in visits; • the regularity of the Fly-In Meetings; and • the number of people attending the Fly-In Meetings. There is no prescribed guidance on the parameters for triggering the above factors. Caution is urged for any person wishing to visit the Cayman Islands on behalf of an OFI that is not registered in the Cayman Islands as a foreign company. We are not aware of any market practice thresholds that an OFI should be aware of in assessing whether fly-in activities trigger the Carrying on Business restriction. Conducting Fly-In Meetings may also require the OFI, under the Immigration (Transition) Act (2022 Revision) as amended and Immigration (Transition) (Temporary Work Permits and Business Visitors' Permits) (Amendment) Regulations (2024 Revision), to obtain a business visitors' work permit for the employee of the OFI in order to carry on temporary business within the Cayman Islands. Such business visitors' work permits are only available to persons who carry on business in or from within the Cayman Islands (which would exclude an OFI that is not registered as a foreign company). Immigration requirements are beyond the scope of this Memorandum but we can advise separately if required. If the Fly-In Meeting involved the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, consideration would also need to be given to the Mutual Funds Licensing Requirement. See section 6.2(c) for definition of "the public" in this context. If the Fly-In Meeting involved the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the Private Funds Registration Requirement should also be considered. See section 6.2(c) for definition of "the public" in this context.
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(b) Are there any particular considerations that an OFI should bear in mind before conducting Fly-In Meetings with prospective investors? For example, is there a risk that frequent Fly-In Meetings may trigger some local licensing or regulatory requirements?	Please see 8.3(a) above.
8.4 Fly-Out Meetings	
(a) Do the licensing and regulatory requirements of your jurisdiction continue to apply to any marketing activities in connection with Funds and Investment Management & Advisory Services which take place at a Fly-Out Meeting?	No.
(b) If the answer to section (a) above is “ no ”, are there any courses of action which could result in the requirements of your jurisdiction having extra-territorial effect? For example, would it be possible for the OFI to induce the resident to leave your jurisdiction to attend a meeting in an offshore office of the OFI without triggering the application of the licensing and regulatory restrictions in your jurisdiction?	No, there are no circumstances in which the requirements would have extra-territorial effect.
8.5 Internet/Social Media	
(a) Please outline the requirements in your jurisdiction which apply to a webpage which is targeted towards investors located in your jurisdiction (e.g. by writing it in the language of your jurisdiction or by sponsoring links generated when internet users in your jurisdiction search for particular terms via a search engine).	There are no specific licensing or regulatory restrictions on marketing via targeted webpages provided the OFI is not subject to the SIB Act and the website in question is not registered in or maintained by an internet service provider in the Cayman Islands (which could trigger the Foreign Company Registration Requirement). If the OFI is licensed under the SIB Act, it should comply with CIMA’s Statement of Guidance on Use of the Internet. Among other things, this requires that adequate information is provided on the OFI’s website to allow potential customers to make an informed assessment about the OFI’s identity, its physical address and head office. As a matter of best practice, the OFI should state on its website that it is regulated by CIMA and by any applicable regulator in its home jurisdiction.
(b) Does your jurisdiction impose requirements/restrictions in respect of webpages which have not been targeted towards investors in your jurisdiction but which are accessible from your jurisdiction?	No. Please see 8.5(a) above.
(c) If the answer to section (b) is “ yes ”, what steps could an OFI take to reduce the regulatory risk in your jurisdiction as regarding marketing materials posted on non-targeted webpages ? For example, by	N/a.

requiring an investor or potential investor to verify suitability through acceptance of a disclaimer, provide confirmation that he is not located in your jurisdiction, by making the pages password protected or through use of a secure portal to regulate information available to users?	
(d) Please outline any requirements in your jurisdiction which apply to marketing activities which take place via social media (e.g. blogs, X Corp. (formerly known as Twitter), social networks (Facebook, LinkedIn), forums or photo/video-sharing platforms (e.g. YouTube, Instagram)) and which are targeted towards investors located in your jurisdiction e.g. (i) posts are written in the language of your jurisdiction or have direct relevance to investors in your jurisdiction or (ii) adverts are sponsored to appear on the user pages of investors based in your jurisdiction? Please can you consider if activities on social media would be treated differently if they were conducted by means of a direct message to an investor in your jurisdiction as opposed to a post that can be viewed by many users of the platform including an investor in your jurisdiction.	Although there are no statutory requirements in place for marketing activities which take place via social media, 8.5(a) above should be borne in mind. Activities on social media by means of a direct message would not be treated differently in this regard.
(e) Does your jurisdiction impose requirements/restrictions in respect of social media content which has not been targeted towards investors in your jurisdiction but is nevertheless accessible from your jurisdiction?	No, provided the social media website/platform in question is not registered in or maintained by an internet service provider in the Cayman Islands.
(f) Please set out any practical advice which OFIs should follow in order to reduce the regulatory risk in your jurisdiction regarding marketing activities conducted via social media. For example, is it recommended that all posts contain either the full recommended disclaimer or is it ok to include a link to such disclaimer instead? On X Corp. (formerly known as Twitter), is the use of images a possible solution to the problem of character limitation e.g. by posting a disclaimer as an attachment to a tweet?	If advertising is taking place via social media, it would be suggested that a disclaimer (as set out in Appendix 1/2/3) is included in the relevant advert when marketing towards Cayman investors. Ideally this would be set out in full, but a link to the disclaimer may be satisfactory. Please see 6.3(e) above.
(g) Are there any legends, risk factors, disclosures and disclaimers which are required or recommended by local counsel for inclusion in webpages and/or social media which contain marketing materials relating to Funds and/or Investment Management & Advisory	Please see 6.3(e) above and Appendix 1.A. See also our answer in Appendix 4.B.

Services and which may be accessed by investors located in your jurisdiction?	
(h) Please outline (or cross-refer) to any licensing/regulatory requirements in your jurisdiction which apply to virtual events/meetings (e.g. online web/video conferences/channels) involving marketing/selling activities relating to Funds and/or Investment Management & Advisory Services conducted with investors in your jurisdiction (e.g. virtual roadshows, presentations or promotional events).	There are no specific licensing or regulatory restrictions on virtual events or meetings conducted with investors in the Cayman Islands provided the OFI is not subject to the SIB Act and the virtual events and meetings in question are not hosted by / do not involve a website registered in or maintained by an internet service provider in the Cayman Islands.
(i) Is it recommended or mandatory to include certain disclaimers/warnings in the materials presented/disseminated by means of virtual events/meetings relating to Funds and/or Investment Management & Advisory Services?	No, there are no mandatory requirements in this regard and we are not aware of any customary market practice to include any such disclaimer/warning. However the recommendations regarding the disclaimers/warnings in marketing materials apply generally – please see 8.1(b) above.
8.6 General Marketing	
(a) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing by an OFI in your jurisdiction as follows: (i) general brand marketing that comprises the use of the OFI's corporate name, logo, slogan or design scheme; (ii) providing general information about the OFI (e.g. history, business divisions, key persons); (iii) publishing articles/giving interviews e.g. thought leadership pieces or macroeconomic analysis/market outlook; and (iv) general marketing materials which refer to awards/customer testimonials.	There are no specific licensing or regulatory restrictions on general marketing that comprises the use of an OFI's corporate name, logo, slogan or design scheme, the provision of general information about the OFI, the publication of articles/giving of interviews (e.g. thought leadership pieces or macroeconomic analysis/market outlook) or the provision of general marketing materials which refer to awards/customer testimonials, in each case where provided on a remote basis, but please note our responses to the other questions in this section 8, as well as the information in section 7.1(a) above in respect of the risks of Carrying on Business in the Cayman Islands. The type of investor targeted would not change this. Care should be taken to ensure that any general marketing activities carried out at Fly-In Meetings do not constitute Carrying on Business in the Cayman Islands and potential work permit/immigration issues should also be considered.

Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	
(b) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves general awareness-raising of product lines or service lines including discussion of general strategies (but without reference to a specific Fund or Investment Management & Advisory Service). Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Please see section 8.6(a) above which applies equally here.
(c) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves discussions which refer to particular <i>characteristics</i> of a Fund or Investment Management & Advisory Service (e.g. investment strategies or ideas) without referring to the name of the relevant Fund or Investment Management & Advisory Service? An example of this type of marketing would include a tear sheet which while it may not include the name of the relevant Fund or Investment Management & Advisory Service, may include a brief description of strategy, terms, summary statistics (e.g. relating to AUM, performance, risk) and/or a list of key service providers. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Please see section 8.6(a) above which applies equally here.
(d) Are there any rules regarding the form/content of written marketing materials which contain the type of information referred to in 8.6(c) above e.g. tear sheets/snapshots of marketing presentations that do not refer to the name of the Fund?	No.
(e) Are there any licensing or regulatory restrictions which may apply when an employee of an OFI: (i) attends a finance-related event in your jurisdiction; or	No, although we would recommend seeking the advice of the event organiser as to whether a business visitors' work permit should be sought (see 8.3(a)). We note a business visitors' work permit is less likely to be required when an employee is only attending a finance-related event.

(ii) is a speaker at a finance-related event in your jurisdiction and discusses general trends/themes rather than a specific Fund/IMAS?	
(f) Are there any restrictions in relation to solely socialising with prospective investors in your jurisdiction?	No, provided the activities are genuinely limited to socialising only.
(g) Are there any restrictions in relation to solely distributing business cards (paper or electronic)? Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	No.
(h) Is it recommended or mandatory to include certain disclaimers/warnings in any general marketing materials presented/disseminated?	No, there are no mandatory requirements in this regard and we are not aware of any customary market practice to include any such disclaimer/warning. However the recommendations regarding the disclaimers/warnings in marketing materials apply generally – please see 8.1(b) above and Appendix 4.
8.7 Pre-Marketing	
(a) Is it permitted to conduct any “ pre-marketing ” activities in respect of a Fund in your jurisdiction to assess investor appetite either: (A) before committing to any registration/ notification/ approval/ licensing requirements; or (B) during the relevant registration/ notification/ approval/ licensing process? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of a Fund.	There is no concept of permitted "pre-marketing" activities of Funds in the Cayman Islands. The Mutual Funds Act, the Private Funds Act and the SIB Act do not contain a general definition of what constitutes "marketing". For completeness, the Mutual Funds Act contains a specific definition of "marketing" in the context of EU Connected Funds, being "a direct or indirect offering or placement at the initiative of the AIFM or on behalf of the AIFM of shares, trust units or partnership interests of an EU Connected Fund it manages to or with investors domiciled or with a registered office in the EU". Based on this definition, it is likely that activities that do not constitute an offering or placement, including pre-marketing activities, would be unlikely to constitute "marketing". Pre-marketing activities would be unlikely to constitute an OFI operating from a Place of Business / Carrying on Business in the Cayman Islands (except potentially when such activities take place at fly-in meetings; see further at section 8.3(a)), therefore the Foreign Company Registration Requirement and the Securities Investment Business Licensing Requirement are unlikely to be triggered. Further, provided that such activities are not structured in such a way that they amount

	to an “offer to the public in the Cayman Islands” the Mutual Funds Licensing Requirement and the Private Funds Registration Requirement are unlikely to apply. See section 6.2(c) for a definition of “offer to the public” in this context. See 8.7(b) below for details of the marketing activities that could trigger the various regulatory requirements.
(b) Where “pre-marketing” of a Fund is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	There is no express permission for pre-marketing of Funds in the Cayman Islands. It is likely that circulating presentations, drafting offering documents and draft subscription documents would not constitute an offering or placement, especially if the Fund is still under formation. Such activity is unlikely to constitute an OFI operating from a Place of Business in the Cayman Islands / Carrying on Business in the Cayman Islands (except potentially when such activities take place at fly-in meetings; see further at section 8.3(a)), and therefore the various registration/licensing requirements are unlikely to be triggered. If an OFI proposes to circulate any final offering and subscription documents, especially for a Fund that has been established, all relevant regulatory considerations and registration requirements (including the Foreign Company Registration Requirement, the Securities Investment Business Licensing Requirement, the Mutual Funds Licensing Requirement and the Private Funds Registration Requirement) should be noted as such circulation would likely constitute an offering and placement of a Fund. However if the activities are restricted to e.g. Sophisticated Persons/High Net Worth Persons then it is likely that this would fall outside the concept of an “offer to the public in the Cayman Islands” and therefore neither the Mutual Funds Licensing Requirement nor the Private Funds Registration Requirement would be triggered.
(i) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	See 8.7(b), above.
(ii) the status of the Fund (e.g. whether established or still under formation);	See 8.7(b), above.
(iii) whether the documents are in draft or final form;	See 8.7(b), above.
(iv) any specific “pre-marketing” activities to avoid on the basis that these will trigger the relevant requirements; and	See 8.7(b), above.

(v) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	N/A; see 8.7(a), above.
(c) Are there any registration/ notification/ approval /licensing requirements which apply in respect of the OFI conducting pre-marketing of a Fund in your jurisdiction?	There are no specific registration, notification, approval or licensing requirements with respect to pre-marketing activities, however, please see 8.7(b) above.
8.8 Investment Advice	
(a) Is it permitted for an OFI to provide Investment Advice in relation to a Fund or Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	In general yes, subject to: Foreign Company Registration Requirement (a) the OFI not establishing a Place of Business in or being deemed to "carry on business" in the Cayman Islands as a result; and (b) the OFI not already being registered in the Cayman Islands as a foreign company under Part IX of the Companies Act. If the OFI established a Place of Business or was deemed to be Carrying On Business in the Cayman Islands as a result of the provision of the advice, it would be required to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Where the OFI establishes a Place of Business in or is deemed to Carry on Business in the Cayman Islands (or if it was already registered as a foreign company under Part IX of the Companies Act) it would need to consider whether it was conducting Securities Investment Business through a place of business the OFI has established in the Cayman Islands and required a licence or to be registered as a Registered Person under the SIB Act, unless such activity was an Excluded Activity or the OFI is a Non-Registrable Person under the SIB Act (please note the requirement to make a Registered Person Filing). See Section 7.1(a) above for more detail. Mutual Funds Licensing Requirement If the Investment Advice relates to the marketing/selling of an Open-Ended Fund to the public in the Cayman Islands, the Mutual Funds Act considerations set out in section 5(a) should also be borne in mind. Private Funds Registration Requirement

	If the Investment Advice relates to the marketing/selling of a Closed-Ended Fund to the public in the Cayman Islands, the considerations relating to the Private Funds Act set out in section 5(a) should also be considered.
(i) available exemptions which permit the provision of Investment Advice. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	Please see above.
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Investment Advice is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	Please see above.
(iii) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Investment Advice or not.	Please see above.
(b) Does the regulatory regime in your jurisdiction applicable to the marketing/provision of Investment Advice extend to advice in relation to portfolio construction and/or manager selection ? If not, please could you briefly outline how the marketing/provision of advice in relation to portfolio construction/manager selection is regulated in your jurisdiction, if at all.	There is no specific law or regulation in this regard.
8.9 Arranging	
(a) Is it permitted for an OFI to provide Arranging services in relation to a Fund or Investment Management & Advisory Services with an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Please see the answer to 8.8 above which applies equally here.

(i) available exemptions which permit the provision of Arranging. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “black-letter law” exemptions and accepted practice.	Please see the answer to 8.8 above which applies equally here.
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Arranging is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	Please see the answer to 8.8 above which applies equally here.
(iii) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Arranging or not.	Please see the answer to 8.8 above which applies equally here.
8.10 Subscription Documentation and Relationship Management	
Sections (a) to (c) below look at scenarios relating to the provision by an OFI to an investor of either: • Fund subscription documentation; or • contracts relating to the provision of Investment Management & Advisory Service(s). In relation to sections (a) to (c) please can you briefly describe any relevant restrictions or considerations that apply or, if relevant, please cross-refer to other sections of the Memorandum. Are the below scenarios permitted?	
(a) The OFI provides/sends: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) to a potential investor:	

(i) where the OFI and the investor are <u>both</u> in your jurisdiction (e.g. at a Fly-In Meeting); or	Please see response set out in paragraphs 1 and 3 of 8.3(a) above.
(ii) where the OFI is <u>outside</u> your jurisdiction but the investor is <u>in</u> your jurisdiction (e.g. the OFI sends the documentation via email/post).	Please see response set out in paragraph 2 of to 8.3(a) above.
(b) The: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) is signed :	
(i) where the relevant signatories for <u>both</u> parties are in your jurisdiction (e.g. at a Fly-In Meeting); or	Please see response set out in paragraph 1 of 8.3(a) above. We recommend that no subscription documentation is signed in the Cayman Islands by or on behalf of the relevant Fund being marketed in order to avoid any argument that this constitutes "Carrying On Business" in the Cayman Islands.
(ii) where the relevant signatories for the Fund or provider of the Investment Management & Advisory Service are outside your jurisdiction but the investor is in your jurisdiction (e.g. the signed documents are transmitted between the parties via email/fax/post/courier).	Yes.
(c) Will the location where documentation is signed by either party as described in either section (b)(i) or (ii) above affect whether the contract is deemed "booked" in your jurisdiction?	There is no concept of a contract being "booked" in the Cayman Islands. The considerations set out in paragraph 1 of 8.3(a) above should be borne in mind.
(d) This question 8.10(d) focuses on relationship management and/or investor relations activities , which are conducted between an OFI and an investor once such investor has invested in a Fund and/or engaged the OFI to provide an Investment Management & Advisory Service. Such activities would, for example, involve the OFI: • updating the investor on its existing investments; and/or	An OFI is generally permitted to conduct relationship management / investor relations activities, including with respect to clients who were initially signed up by a local intermediary. However the considerations set out at 7.3(a) apply generally. When conducting such activities at a Fly-In Meeting, the OFI should carefully consider whether such Fly-In Meeting may constitute Carrying on Business, as well as whether the Securities Investment Business Licensing Requirement may apply. Please see our response at 8.3.

- providing account statements, transaction reports or periodic reports to the investor. Please confirm whether an OFI would be permitted to conduct such relationship management/investor relations activities: - on a cross-border basis; or at a Fly-In Meeting in your jurisdiction. Alternatively, please describe any relevant restrictions or considerations that apply if relevant cross-referring to other sections of the Memorandum. For the purposes of this question, please presume that the marketing/selling activities that underpin the relationship between the OFI and the investor were conducted pursuant to permitted means in your jurisdiction and/or were conducted in another jurisdiction before the investor re-located to your jurisdiction. Please also presume that the relationship management/investor relations activities will not involve any further marketing/selling of other funds/services outside the scope of the existing relationship.	
8.11 Requests for Proposals (RFPs)	
This question 8.11 looks at the scenario where an OFI is asked to respond to a request for proposal, request for information or similar process (an RFP) from an investor in your jurisdiction.	
(a) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of a Fund from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	There are no specific registration, notification, approval or licensing requirements for responding to RFPs. Please refer to 5(a) above, which applies equally to an RFP in respect of a Fund.
(b) Could the activity of responding to an RFP regarding a Fund fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Yes, please refer to 5(a) above.

(c) Please could you outline whether there are any registration/ notification/ approval/ licensing requirements which apply where an OFI responds to an RFP in respect of an Investment Management & Advisory Service from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	There are no specific registration, notification, approval or licensing requirements for responding to RFPs. Please refer to 5(a) above, which applies equally to an RFP in respect of an Investment Management & Advisory Service.
(d) Could the activity of responding to an RFP regarding an Investment Management & Advisory Service fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Yes, please refer to 5(a) above, which applies equally to an RFP in respect of an Investment Management & Advisory Service.
8.12 Relocation of Investor	
(a) What restrictions, if any, might apply where an OFI has an investor that invested in a Fund and/or that received the OFI's Investment Management & Advisory Services while the investor was in another jurisdiction but that investor has now moved into your jurisdiction?	The relocation of a single investor in and of itself is unlikely to trigger restrictions in the Cayman Islands.
(b) Can the OFI continue to service that investor in respect of its original investment/relationship?	Yes.
(c) If the OFI wished to conduct further marketing activities in respect of that Fund or Investment Management & Advisory Service with that investor, what considerations would apply? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Please see 6.2(b), 7.1(a) and 7.5(a) above.
(d) Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc?	Yes – for the purpose of the Mutual Funds Act and the Private Funds Act Professional Investors are generally excluded from the definition of "the public in the Cayman Islands". Marketing to Retail Investors located in the Cayman Islands would constitute marketing to "the public in the Cayman Islands". Please see the Mutual Funds Licensing Requirement and the Private Funds Registration Requirement.

8.13 Activities with Distributors/Intermediaries	
The below questions (a) and (b) explore fact patterns where a distributor/intermediary is required/necessary. In section 6.2(d)(iv)(A) we ask you whether a distributor/intermediary is necessary in order to market/sell a Fund to the public. In section 7.1(d)(i)(A) we ask you whether a distributor/intermediary is necessary in order to market/sell a Fund pursuant to the potential private placement routes explored in section 7.1. Where your answers indicate that a distributor/intermediary is necessary in either (or both) of those scenarios, please can you address the scenarios set out below. In answering the below questions, please assume that the relevant distributor/intermediary in your jurisdiction has the necessary licence/authorisation to undertake the relevant distribution activities and that appropriate contractual provisions will be entered into with the distributor/intermediary governing the relationship. Please note that this question focuses on how activities may be undertaken with the distributor/intermediary. Where appropriate you may wish to cross-refer to requirements discussed elsewhere in this Memorandum regarding the requirements that apply to the Funds that will be marketed/sold (i.e. whether they need to be approved/registered in the jurisdiction and/or whether they need to fall within a particular route/exemption), but such requirements are not the focus of this question.	
(a) Please flag any practical considerations which an OFI may wish to consider in terms of establishing a relationship with a such distributor/intermediary e.g. whether there are requirements to consider as to how contact between the OFI and the distributor/intermediary based in your jurisdiction takes place and regarding the provision of documents/information about the Fund to the distributor/intermediary.	N/A – A local distributor or intermediary is not necessary, please see 6.2(d)(iv) and 7.1(d)(i) above.
(b) Please flag any practical considerations which an OFI may wish to consider in terms of interactions with potential investors once the distributor/intermediary has been appointed. Are there any practical considerations on how activities should be structured with the distributor/intermediary and/or with any potential investors.	N/A – A local distributor or intermediary is not necessary, please see 6.2(d)(iv) and 7.1(d)(i) above.
The below questions (c) and (d) explore fact patterns where a distributor/intermediary is permitted. In section 6.2(d)(iv)(B) we ask you whether a distributor/intermediary is permitted in order to market/sell a Fund to the public. In section 7.1(d)(i)(B) we ask you whether a distributor/intermediary is permitted in order to market/sell a Fund pursuant to the potential private placement routes explored in section 7.1. Where your answers indicate that a distributor/intermediary is permitted in either (or both) of those scenarios, please can you address the scenarios set out below. It may be that an OFI wishes to work with a distributor/intermediary as a means of addressing a regulatory restriction in your jurisdiction (e.g. a firm licensing requirement) that the OFI would otherwise be caught by in connection with the marketing/selling activities in connection with a Fund. Alternatively it may be that an OFI is looking to appoint the distributor for commercial/relationship reasons. In answering the below questions, please assume that the relevant distributor/intermediary in your jurisdiction has the necessary licence/authorisation to undertake the relevant distribution activities and that appropriate contractual provisions will be entered into with the distributor/intermediary governing the relationship.	

Please note that this question focuses on how activities may be undertaken with the distributor/intermediary. Where appropriate you may wish to cross-refer to requirements discussed elsewhere in this Memorandum regarding the requirements that apply to the Funds that will be marketed/sold (i.e. whether they need to be approved/registered in the jurisdiction and/or whether they need to fall within a particular route/exemption), but such requirements are not the focus of this question.	
(c) Please flag any practical considerations which an OFI may wish to consider in terms of establishing a relationship with such a distributor/intermediary e.g. whether there are requirements to consider as to how contact between the OFI and the distributor/intermediary based in your jurisdiction takes place and regarding the provision of documents/information about the Fund to the distributor/intermediary.	When contacting and establishing a relationship with a local distributor or intermediary for both public offerings and private placements, the OFI should note that the Foreign Company Registration Requirement would still apply if such OFI is deemed to be Carrying on Business in the Cayman Islands. Please see above on the definition and implications of Carrying on Business in the Cayman Islands generally. In terms of other practical considerations, the arrangement between the OFI and local distributor/intermediary should be documented in an agreement which sets out the duties and obligations of each party, including details of which Fund documents/information relating to the Fund will be provided to the local intermediary/distributor and how interactions with potential investors will be handled once the local intermediary has been appointed. All offering documents should make it clear that a distributor/intermediary arrangement is in place. The use of co-branding should be considered on a case-by-case basis, as co-branding should be handled carefully to ensure that it does not undermine the factual basis for the licensed intermediary exemption. The Fund's offering documents must reflect the position that the offering is made by or through the licensed intermediary/distributor.
(d) This question focuses on interactions with potential investors once the distributor/intermediary has been appointed . Are there any practical considerations on how activities should be structured with the distributor/intermediary and/or with any potential investors.	Public: Please see sections 6.2(d)(iv) and 7.1(d)(i) with respect to the exemptions to the Mutual Funds Licensing Requirement and the Private Funds Registration Requirement where equity interests in a Fund are offered to the public in the Cayman Islands through a licensed intermediary. In this regard, the OFI should ensure that potential investors are made aware of the distributor/intermediary arrangement by making it clear that such an arrangement is in place in all offering documents. There is no specific regulatory guidance as to whether the OFI may contact potential investors directly or whether the OFI may attend meetings with local investors with the licensed intermediary/distributor as a chaperone other than that the offering to the public must be made by or through the intermediary/distributor. In practice, the intermediary/distributor must play a substantive and genuine role in the distribution of the Fund and should be the entity through which the offering is made, and it should be the intermediary that carries out the regulated activities, such as arranging deals in investments, advising the investors on investments. Contacting local investors directly or attending meetings with investors, while not expressly prohibited, may be construed as the OFI carrying on securities investment business in the Cayman Islands in its own right and therefore should be considered in more detail on a case-by-case basis. The OFI should note that the Foreign Company Registration Requirement would still apply if such OFI is deemed to be Carrying on Business in the Cayman Islands through contacting or meeting

	with local investors. Please also see above on the definition and implications of Carrying on Business in the Cayman Islands generally. Private Placement: N/A
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9. [SECTION INTENTIONALLY LEFT BLANK]

10. LICENCE

Questions	Answers
If a licence is required in order to be able to engage in marketing/selling a Fund or Investment Management & Advisory Services, please explain in outline only: (a) The type of licence that would be required;	Generally a licence is unlikely to be required if the activity is conducted from outside the Cayman Islands, does not involve Fly-In Meetings, is not conducted through a website registered in or maintained by an internet service provider in the Cayman Islands and the OFI is not already registered as a foreign company under Part IX of the Companies Act. Foreign Company Registration Requirement Where the OFI establishes a Place of Business in or is deemed to Carry on Business in the Cayman Islands, it will need to apply to the Registrar of Companies to register as a foreign company under Part IX of the Companies Act. Securities Investment Business Licensing Requirement Any person engaged in Securities Investment Business to whom none of the exemptions apply (i.e. the relevant activity is not an Excluded Activity) and who is not a Non-Registrable Person (for the exemptions and non-registrable persons categories please see above) must apply to CIMA for a licence or to be registered as a Registered Person if the selling/marketing activity is regulated under the SIB Act. Licences are available in the following categories: broker-dealer; market maker; securities arranger; securities manager; and securities advisor. The type of licence applicable depends on the activities to be undertaken, which is a question of fact. On the face of it marketing and/or selling activities could potentially fall under any of the categories, so an analysis would have to be undertaken on a case-by- case basis. Licences other than those for market makers and securities arrangers may be unrestricted or restricted: a restricted licence limits the clients with whom the licensee may conduct business, either in number or by setting a minimum value of a client's investment. The licence application fee ranges from US\$609.76 to US\$1,219.51 and the fee payable upon the initial grant and any renewal ranges from US\$3,658.54 to US\$12,195.12 depending on the licensed activity. A licence must specify one or more of the activities set out in the Schedule 2 to the SIB Act (and summarised above) in which the licensee is permitted to engage.

	CIMA may, in granting a licence, attach conditions (i) limiting the nature and scope of Securities Investment Business which may be carried on, (ii) specifying whether or not the licensee may hold clients' assets, and (iii) requiring the licensee or a senior officer or manager of the licensee to acquire and maintain membership of a recognised securities exchange or a recognised securities organisation. In order to obtain a licence an applicant must satisfy CIMA that: • it will comply with the SIB Act and any regulations made under the SIB Act; • it will comply with the Anti-Money Laundering Regulations; • approving the application will not be against the public interest; • it has personnel with the necessary skills, knowledge and experience and has appropriate facilities and records for the scale of business to be undertaken; and • its senior officers are fit and proper persons. Mutual Funds Act licensing and registration The Mutual Funds Act considerations set out in Section 5(a) refer to the possibility of an Open-Ended Fund becoming subject to the Mutual Funds Act and therefore requiring to be licensed or registered under the Mutual Funds Act. In practice, few Open-Ended Funds require to be licensed under the Mutual Funds Act. More typically such Open-Ended Funds are subject to the registration requirements under the Mutual Funds Act. Given, however, that the overriding subject matter of this document relates to OFIs, the licensing and registration requirements under the Mutual Funds Act are not set out here. Instead, an OFI is advised to seek legal advice if it is concerned that the Mutual Funds Act considerations set out in Section 5(a) may apply. Private Funds Act registration The Private Funds Act considerations set out in Section 5(a) refer to the possibility of a Closed-Ended Fund becoming subject to the Private Funds Act and therefore requiring to be registered under the Private Funds Act. In practice, few Closed-Ended Funds would require to be registered under the Private Funds Act, as the Private Funds Registration Requirement would not be triggered unless such Fund is offered to the public in the Cayman Islands. An OFI is advised to seek legal advice if it is concerned that the Private Funds Act considerations set out in Section 5(a) may apply.
(b) What, if any, presence in your jurisdiction the OFI would need to establish in order to obtain the relevant licence, including:	Please see 7.1(a) and 10(a) above. We note that physical presence of the OFI in the Cayman Islands is not a prerequisite for obtaining and maintaining any of the relevant licences.

(i)	any specific legal form requirements (e.g. a local company or a branch);	In order to be registered as a foreign company in the Cayman Islands, the OFI will need to have a registered office in the Cayman Islands, which must be provided by a licensed registered office services provider. The process of obtaining a registered office is straightforward and requires a services agreement with a licensed registered office services provider in the Cayman Islands. The customary fees for providing licensed registered office services varies among the registered office services providers. A registered foreign company is not required to have a local presence in the Cayman Islands merely by virtue of its foreign company registration. Registration as a foreign company is with Registrar of Companies (as to which see section 10(c), below).
(ii)	any requirement to list/register the local presence in a commercial registry or other local register;	See (i) above.
(iii)	any limitations regarding ownership of the local presence;	There are no restrictions or limitations regarding the ownership of an OFI in this context.
(iv)	any substance requirements that apply to the local presence;	The International Tax Co-operation (Economic Substance) Act (2026 Revision) and International Tax Co-operation (Economic Substance) Regulations (as amended) (together, the ES Act) set out the economic substance requirements for entities incorporated or registered in the Cayman Islands. The ES Act requires Cayman Islands incorporated companies, limited liability companies, limited liability partnerships and registered foreign companies to file an annual economic substance notification. The Act requires a "relevant entity" conducting any "relevant activity" (which includes, without limitation, fund management business) to report to the Tax Information Authority of the Cayman Islands and maintain economic substance in the Cayman Islands. An OFI would not ordinarily constitute a "relevant entity" unless it is registered as a foreign company in the Cayman Islands. We note that an entity which is tax resident in another jurisdiction is also excluded from the definition of a "relevant entity", therefore even if an OFI is registered as a foreign company in the Cayman Islands, it would likely be exempt from the economic substance requirements under the ES Act.
(v)	any requirements regarding locally employed staff (e.g. minimum number of directors and/or employees, any qualification or notification requirements that apply in respect of such staff); and	There are no restrictions or limitations regarding local employment for an OFI in this context.
(vi)	indication of time period and approximate costs to set up/establish local presence.	See section (c) below.

(c) An outline of the procedure involved in obtaining such licence including an indication of the time it would ordinarily take to obtain such licence; and	Foreign Company Registration Requirement In order to register as a foreign company in the Cayman Islands pursuant to Part IX of the Companies Act, the foreign company is required to deliver the following documentation to the Registrar of Companies (via the foreign company's chosen registered office provider): (1) Certified copy of the foreign company's certificate of incorporation, or the equivalent document issued by the relevant authority as evidence of its incorporation; (2) A certificate of good standing issued by the relevant authority dated within one month of the filing; (3) A certified copy of the constitutional documents of the foreign company; (4) A list of its directors together with the address of each director and the date of appointment and, where relevant, the date of any director's resignation; and (5) The names and addresses of one or more persons resident in the Cayman Islands authorised to accept on its behalf service of process and any notices required to be served on it (this is customarily the foreign company's chosen registered office). The foreign company must also pay a prescribed fee of US\$1,829.27 to the Registrar on application and thereafter a fee of US\$2,012.20 annually. Once the Registrar of Companies is satisfied with the documentation received, it will typically issue the certificate of registration with five to ten business days. Securities Investment Business Licensing Requirement Where a licence is required Please see 7.1(a) and 10(a) above. In addition to a cover letter and the application form, the following will need to be submitted by the applicant (or its legal counsel on the applicant's behalf): (1) Prescribed Application fee(s) (2) Details of Securities Experience and Securities Qualifications for Key Personnel (3) Copy of the Memorandum and Articles of Association, or other instrument constituting and defining the constitution of the applicant (4) Detailed Business Plan (5) Organisational structure chart (6) Group structure chart
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| | <ul style="list-style-type: none"> (7) Outline of the major sources of the Group's income (8) Details of any sub-contracting arrangements (9) List of companies with whom the applicant has or intends to have agency agreements (10) Systems and Controls Information (11) Information regarding the arrangements made to ensure the safety of client interest in the event of death, incapacity, holidays and illness. (12) Auditor letter of consent (13) For each, and every natural person listed as a director, manager or shareholder, the following: <ul style="list-style-type: none"> (a) Personal Questionnaire; (b) two character references; (c) one reference verifying good financial standing; (d) a police clearance certificate; (e) a curriculum vitae; (f) copies of professional and academic qualifications; and (g) copies of identification documents, such as a passport (14) For each, and every Corporate Shareholder: <ul style="list-style-type: none"> (a) Personal Questionnaire(s) for the beneficial owner(s); and (b) Audited Accounts; and (c) Evidence that it is traded on a recognised exchange where applicable. (15) Audited Accounts as noted in Section 24 of the Application Form (16) Evidence of Professional Indemnity Insurance. |
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CIMA advises that its expected turnaround time to process an application is 6-8 weeks. However, our experience is that CIMA can take significantly longer than this. In addition, a reasonable amount of lead in time (approximately 4 weeks) should be built in to any licence application timetable whilst the applicant collates the necessary application materials (some of which will be references and other materials required from third parties) and a reasonable amount of time should be built in to address queries raised by CIMA once the application has been submitted. The length of time it takes to deal with such queries is dependent on the nature of the query.

The licence application fee ranges from US\$609.76 to US\$1,219.51 and the fee payable upon the initial grant and any renewal ranges from US\$3,658.54 to US\$12,195.12 depending on the licensed activity.

Where registration as a Registered Person is required

Please see 5.2(a) above. In addition to the application form, the following will need to be submitted by the applicant (or its legal counsel on the applicant's behalf):

- (1) Prescribed Application fee(s)
- (2) Group structure chart
- (3) For each, and every natural person listed as a director, manager or shareholder, the following:
 - (a) Personal Questionnaire;
 - (b) two character references;
 - (c) one reference verifying good financial standing;
 - (d) a police clearance certificate;
 - (e) a curriculum vitae;
 - (f) copies of professional and academic qualifications; and
 - (g) copies of identification documents, such as a passport.
- (4) For each, and every Corporate Shareholder:
 - (a) Personal Questionnaire(s) for the beneficial owner(s); and
 - (b) Audited Accounts; and
 - (c) Evidence that it is traded on a recognised exchange where applicable.
- (5) Audited Accounts as noted in Section 24 of the Application Form
- (6) Evidence of Professional Indemnity Insurance.

CIMA advises that its expected turnaround time to process an application is 6-8 weeks. However, our experience is that CIMA can take significantly longer than this. In addition, a reasonable amount of lead in time (approximately 4 weeks) should be built in to any application timetable whilst the applicant collates the necessary application materials. A Registered Person application has a registration fee of US\$7,317.07 on filing and the same fee is payable annually thereafter.

	Mutual Funds Licensing Requirement Please see the answer to section 10(a).
(d) Please specify the approximate costs associated with obtaining such licence (please include initial application cost together with any ongoing fees).	Please see above.

11. PENALTIES/SANCTIONS

Questions	Answers
(a) Is it the competent regulator that enforces the applicable laws and/or another body (e.g. the courts)?	Yes, CIMA is responsible for the supervision and enforcement of the SIB Act, if necessary, through the Cayman Islands Courts.
(b) Do the possible legal consequences of a breach of applicable laws in relation to the cross-border marketing and sale of Funds and Investment Management & Advisory Services into your jurisdiction include:	
(i) criminal sanctions;	Yes. Under the SIB Act criminal sanctions may be applicable to both the OFI, its directors, officers and employees. A person who conducts Securities Investment Business without being the holder of a current licence or exemption under the SIB Act commits an offence and is liable on summary conviction to a fine of US\$122,000 and to imprisonment for one year, and in the case of a continuing offence, to a fine of US\$12,200 for each day during which the offence continues. Generally a person that contravenes the Mutual Funds Act will be liable on summary conviction to a fine of US\$122,000. A person who knowingly or recklessly provides any information to CIMA which is false or misleading in a material particular commits an offence and is liable on summary conviction to a fine of US\$12,200 and to imprisonment for six months.
(ii) other sanctions (e.g. fines, loss of licence, public censure);	CIMA has wide ranging-powers to impose sanctions at its discretion. A non-exhaustive list of such powers is set out at section 17 of the SIB Act, which states as follows. <i>17. (1) Without prejudice to any other action that may be instituted or taken against a licensee or registered person, if at any time it appears to the Authority that a licensee or registered person has failed to comply with any of the requirements under this Law or any regulation made under it the Authority may by written notice direct the licensee to ensure that the requirement is complied with within such period and on such terms and conditions as the authority may specify and the licensee or registered person shall comply with the notice.</i> <i>(2) The Authority may carry out any of the actions specified in subsection (2A) if it knows or has reasonable grounds to believe that a licensee or a registered person —</i>

	(a) <i>is unable or appears likely to become unable to meet its obligations as they fall due;</i> (b) <i>is carrying on business fraudulently or otherwise in a manner detrimental to the public interest, to the interest of its clients or to the interest of its creditors;</i> (c) <i>has contravened any provision of this Law or the regulations or of the Anti-Money Laundering Regulations (2025 Revision);</i> (d) <i>has failed to comply with a condition of its licence or registration;</i> (e) <i>has not conducted the direction and management of its business in a fit and proper manner or has directors, senior officers, managers or persons who have acquired ownership or control who are not fit and proper persons; or</i> (f) <i>has failed to comply with any lawful direction from the Authority.</i> (2A) <i>The actions referred to in subsection (2) are as follows —</i> (a) <i>revoke the licence or cancel the registration;</i> (b) <i>impose conditions or further conditions upon the licence or registration or amend or revoke any such conditions;</i> (c) <i>apply to the court for any order which is necessary to protect the interests of clients or creditors of the licensee or registered person such orders including an injunction or restitution or disgorgement order under section 18;</i> (d) <i>publish in the Gazette and in any official publications of the Authority a breach by any person of this Law, of any regulations made hereunder or of any lawful direction issued by the Authority;</i> <i>at the expense of the licensee or registered person, require that an auditor's report be submitted to the Authority on the licensee's or registered person's anti-money laundering systems and procedures for compliance with the Anti-Money Laundering Regulations (2025 Revision);</i> (f) <i>require the substitution of any director or officer of the licensee or registered person whenever appointed or the divestment of ownership or control;</i> (g) <i>at the expense of the licensee or registered person, appoint a person to advise the licensee or registered person on the proper conduct of its affairs and to report to the Authority thereon;</i> (h) <i>at the expense of the licensee or registered person appoint a person to assume control of the licensee's or registered person's affairs who shall have all the powers necessary to administer the affairs of the licensee or registered person including the</i>
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	<i>power to terminate the securities investment business of the licensee or registered person;</i> (i) <i>in the case of a reasonable belief that the licensee or registered person has materially contravened the Anti-Money Laundering Regulations (2025 Revision), report the same to the Director of Public Prosecutions; or</i> (j) <i>require such action to be taken by the licensee or registered person as the Authority reasonably believes necessary for the purposes of dealing with the circumstances referred to in subsection (2)(a) to (g).</i> (3) <i>Where the Authority decides to take action under subsection (2)(A), it shall notify the licensee or registered person in writing, specifying the following-</i> (a) <i>the action that the Authority has taken or intends to take;</i> (b) <i>the reasons for the action, with reference to statutory provisions, and when it is to take effect;</i> (c) <i>whether, in addition to (d), the licensee or registered person may make representations to the Authority within such period as may be specified in the notification; and</i> (d) <i>the licensee's or registered person's right to appeal under section 22 or 23 and the procedure therefor.</i> (4) <i>Where action is proposed to be taken by the Authority under subsection (2) and the licensee is a broker member of the Exchange, the Authority shall consult with the Exchange and provide it with a copy of any notification issued under subsection (3).</i> (5) <i>A person appointed under subsection (2)(A)(g) or (h) or whose appointment has been extended under subsection (6)(b) shall, from time to time at his discretion and in any case within three months of the date of his appointment or of the extension of his appointment, prepare and furnish to the Authority a report of the affairs of the licensee or registered person and of his recommendations thereon.</i> (6) <i>On receipt of a report under subsection (5), the Authority may-</i> (a) <i>revoke the appointment of the person appointed under subsection (2)(vii) or (viii);</i> (b) <i>extend the period of his appointment;</i> (c) <i>subject to such conditions as the Authority may impose, allow the licensee to reorganise its affairs in a manner approved by it; or</i>
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	(d) <i>revoke the licence or cancel the registration and apply to the court for an order that the licensee or registered person, if either is a company, be wound up by the court in which case the provisions of the Companies Act (2026 Revision) relating to the winding up of a company shall apply.</i> (7) <i>Notwithstanding any other provision in this Law, the Authority may cancel a licence or registration if the licensee or registered person has ceased, or wishes to cease, to carry on securities investment business, or has not commenced business within one year of the date of the grant of the licence or registration.</i> (8) <i>Whenever the Authority revokes or cancels a licence or registration under this section or section 9 notice of such revocation or cancellation shall forthwith be published in the Gazette.</i> In addition, under the Administrative Fines Regime, CIMA has the authority to impose fines of up to US\$121,951 for an individual and up to US\$1,219,512 for a body corporate, depending on the seriousness of the offence. Pursuant to the Administrative Fines Regime, CIMA may impose fines on the operator of an Open-Ended Fund which breaches the Mutual Funds Licensing Requirement or the operator of a Closed-Ended Fund which breaches the Private Funds Registration Requirement. The fines are up to US\$121,951 for an individual (such as a director or officer) and US\$1,219,512 for a body corporate (such as a corporate director or manager).
(iii) civil claims;	Please see (ii) above.
(iv) the transaction to which the activity relates becoming void or voidable (and if voidable, at whose instigation)?	No. A contract, transaction, obligation or instrument entered into by any person shall not be rendered unenforceable merely because it is entered into in connection with Securities Investment Business carried on by that person without a license or exemption under the SIB Act.
(c) Please provide details of maximum penalties (e.g. fines). Please state whether these sanctions are applicable to the OFI and/or to directors, officers or employees of the OFI and/or both.	Please see the response at 11(b)(ii) above.
(d) Please provide the 5 most recent examples (from published reports) of the competent regulator or courts taking action against an OFI in respect of a breach of applicable laws in relation to the cross-border marketing or sale/provision of Funds and Investment Management & Advisory Services to investors in your jurisdiction.	We are not aware of any recent cases where CIMA has taken such action against an OFI. Any enforcement actions taken by CIMA would usually be confidential and would not therefore be publicly available, unless reported by CIMA. For completeness, we note that CIMA has published a number of recent enforcement decisions on its website https://www.cima.ky/decision-notice , however none of the recent decisions relates to an OFI.

(e) Please comment on: (i) the attitude of the regulator, courts or other body responsible for enforcement of the applicable laws; and (ii) any accepted or tolerated market practice.	CIMA and the Cayman Islands Courts are expected to take a rigorous, though practical and pragmatic approach to enforcement. The Administrative Fines Regime which were amended in June 2020 significantly increased the maximum monetary penalties which may be imposed by CIMA with respect to breaches of applicable laws and regulations.
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APPENDIX 1

DISCLAIMERS: OPEN-ENDED FUND

A: WRITTEN DISCLAIMERS

Wording to be used when responding to a reverse enquiry:

There is no specific wording to be used in this context as the regime does not distinguish between activities done on a passive basis (e.g. responding to reverse enquiries) or active basis.

Recommended disclaimer for an OFI that has not established a Place of Business and is not registered as a foreign company in the Cayman Islands

The [Investment Manager/Advisor/Fund] is not regulated in the Cayman Islands and is not licensed or otherwise authorised to carry on business, including securities investment business, in or from the Cayman Islands.

Recommended disclaimer for Registered Persons under the SIB Act

The [Investment Manager/Advisor/Fund] is registered but not licensed in the Cayman Islands pursuant to the Securities Investment Business Act (Revised), but is not otherwise authorised to carry on business in or from the Cayman Islands.

Recommended disclaimer for an Open-Ended Fund that is not offered to the public in the Cayman Islands

If the marketing / selling of an Open-Ended Fund does not amount to an "offer to the public" so as to avoid triggering the Mutual Funds Licensing Requirement, it is recommended that the following disclaimer be added:

Investment in the [Fund] carries substantial risk. There can be no assurance that the Fund's investment objective will be achieved and investment results may vary substantially over time. The value of any investments in the Fund may go down as well as up and investors may not get back the amount invested. An investment in the Fund is only suitable for sophisticated persons or high net worth persons only who are able to bear the loss of a substantial portion or even all of their investment in the Fund. An investment in the Fund is not intended to be a complete investment program for any investor.

B: ORAL DISCLAIMERS

No specific oral disclaimer is required, regardless of the fact pattern.

C: DISCLAIMERS – RETAIL INVESTORS

Recommended disclaimer for an OFI that has not established a Place of Business and is not registered as a foreign company in the Cayman Islands

The [Investment Manager/Advisor/Fund] is not regulated in the Cayman Islands and is not licensed or otherwise authorised to carry on business, including securities investment business, in or from the Cayman Islands.

Recommended disclaimer for Registered Persons under the SIB Act

The [Investment Manager/Advisor/Fund] is registered but not licensed in the Cayman Islands pursuant to the Securities Investment Business Act (Revised), but is not otherwise authorised to carry on business in or from the Cayman Islands.

Mandatory disclaimer in the Fund's marketing materials reflecting CIMA's Rules on marketing materials (applicable to mutual funds registered under the Mutual Funds Act)

A MUTUAL FUND LICENCE ISSUED OR A FUND REGISTERED BY THE CAYMAN ISLANDS MONETARY AUTHORITY DOES NOT CONSTITUTE AN OBLIGATION OF THE AUTHORITY TO ANY INVESTOR AS TO THE PERFORMANCE OR CREDITWORTHINESS OF THE FUND.

FURTHERMORE, IN ISSUING SUCH A LICENCE OR IN REGISTERING A FUND, THE CAYMAN ISLANDS MONETARY AUTHORITY SHALL NOT BE LIABLE FOR ANY LOSSES OR DEFAULT OF THE FUND OR FOR THE CORRECTNESS OF ANY OPINIONS OR STATEMENTS EXPRESSED IN ANY PROSPECTUS OR OFFERING DOCUMENT.

D: DISCLAIMERS – MARKETING PASSPORT/MUTUAL RECOGNITION SCHEME

N/a – no such scheme so no disclaimer language relevant in this context.

APPENDIX 2

DISCLAIMERS: CLOSED-ENDED FUND

A: WRITTEN DISCLAIMERS

Wording to be used when responding to a reverse enquiry:

There is no specific wording to be used in this context as the regime does not distinguish between activities done on a passive basis (e.g. responding to reverse enquiries/or active basis).

Recommended disclaimer for an OFI that has not established a Place of Business and is not registered as a foreign company in the Cayman Islands

The [Investment Manager/Advisor/Fund] is not regulated in the Cayman Islands and is not licensed or otherwise authorised to carry on business, including securities investment business, in or from the Cayman Islands.

Recommended disclaimer for Registered Persons under the SIB Act

The [Investment Manager/Advisor/Fund] is registered but not licensed in the Cayman Islands pursuant to the Securities Investment Business Act (Revised), but is not otherwise authorised to carry on business in or from the Cayman Islands.

Recommended disclaimer for a Closed-Ended Fund that is not offered to the public in the Cayman Islands

If the marketing / selling of a Closed-Ended Fund does not amount to an "offer to the public" so as to avoid triggering the Private Funds Registration Requirement, it is recommended that the following disclaimer be added:

Investment in the [Fund] carries substantial risk. There can be no assurance that the Fund's investment objective will be achieved and investment results may vary substantially over time. The value of any investments in the Fund may go down as well as up and investors may not get back the amount invested. An investment in the Fund is only suitable for sophisticated persons or high net worth persons who are able to bear the loss of a substantial portion or even all of their investment in the Fund. An investment in the Fund is not intended to be a complete investment program for any investor.

B: ORAL DISCLAIMERS

No specific oral disclaimer is required, regardless of the fact pattern.

C: DISCLAIMERS – RETAIL INVESTORS

Recommended disclaimer for an OFI that has not established a Place of Business and is not registered as a foreign company in the Cayman Islands

The [Investment Manager/Advisor/Fund] is not regulated in the Cayman Islands and is not licensed or otherwise authorised to carry on business, including securities investment business, in or from the Cayman Islands.

Recommended disclaimer for Registered Persons under the SIB Act

The [Investment Manager/Advisor/Fund] is registered but not licensed in the Cayman Islands pursuant to the Securities Investment Business Act (Revised), but is not otherwise authorised to carry on business in or from the Cayman Islands.

Mandatory disclaimer in the marketing materials of a private fund pursuant to CIMA's Rules on marketing materials (applicable to private funds registered under the Private Funds Act)

THE REGISTRATION OF A FUND BY THE CAYMAN ISLANDS MONETARY AUTHORITY DOES NOT CONSTITUTE ANY GUARANTEE OR ASSURANCE BY THE AUTHORITY TO ANY INVESTOR AS TO THE PERFORMANCE OR CREDITWORTHINESS OF THE FUND.

FURTHERMORE, IN REGISTERING A FUND, THE AUTHORITY SHALL NOT BE LIABLE FOR ANY LOSSES OR DEFAULT OF THE FUND OR FOR THE CORRECTNESS OF ANY OPINIONS OR STATEMENTS EXPRESSED IN ANY MATERIAL USED TO SOLICIT THE PURCHASE OF INVESTMENT INTERESTS IN A FUND.

D: DISCLAIMERS – MARKETING PASSPORT/MUTUAL RECOGNITION SCHEME

N/a – no such scheme so no disclaimer language relevant in this context.

APPENDIX 3

DISCLAIMERS: INVESTMENT MANAGEMENT & ADVISORY SERVICES

A: WRITTEN DISCLAIMERS

Wording to be used when responding to a reverse enquiry:

There is no specific wording to be used in this context as the regime does not distinguish between activities done on a passive basis (e.g. responding to reverse enquiries/or active basis.

Recommended disclaimer for an OFI that has not established a Place of Business and is not registered as a foreign company in the Cayman Islands

The [Investment Manager/Advisor/Fund] is not regulated in the Cayman Islands and is not licensed or otherwise authorised to carry on business, including securities investment business, in or from the Cayman Islands.

Recommended disclaimer for Registered Persons under the SIB Act

The [Investment Manager/Advisor/Fund] is registered but not licensed in the Cayman Islands pursuant to the Securities Investment Business Act (Revised), but is not otherwise authorised to carry on business in or from the Cayman Islands.

B: ORAL DISCLAIMERS

No specific oral disclaimer is required, regardless of the fact pattern.

C: DISCLAIMERS – RETAIL INVESTORS

See 3.A above.

APPENDIX 4

DISCLAIMERS: OTHER

A: GENERAL MARKETING DISCLAIMER

No additional specific wording required as per answer in section 8.6(g). The below wording may be used as applicable.

Recommended disclaimer for an OFI that has not established a Place of Business and is not registered as a foreign company in the Cayman Islands

The [Investment Manager/Advisor/Fund] is not regulated in the Cayman Islands and is not licensed or otherwise authorised to carry on business, including securities investment business, in or from the Cayman Islands.

Recommended disclaimer for Registered Persons under the SIB Act

The [Investment Manager/Advisor/Fund] is registered but not licensed in the Cayman Islands pursuant to the Securities Investment Business Act (Revised), but is not otherwise authorised to carry on business in or from the Cayman Islands.

B: INTERNET DISCLAIMER

No additional specific wording required as per answer in section 8.5(c), 8.5(f) and/or 8.5(g). The wording in Appendix 1 / 2 / 3 should be used as applicable.

Per 8.5(f), if advertising is taking place via social media, local counsel suggest that a disclaimer (as set out in Appendix 1) is included in the relevant advert when marketing towards Cayman investors. Ideally this would be set out in full, but a link to the disclaimer may be satisfactory.

If the OFI is licensed under the SIB Act, its website should state:

- the identity of the OFI;
- the physical address of the OFI;
- the address of the OFI's head office; and
- that the OFI is regulated by the Cayman Islands Monetary Authority and its regulator in its home jurisdiction (where applicable).

C: VIRTUAL MARKETING - DISCLAIMER

No additional specific wording required as per answer in section 8.5(i). The wording in Appendix 1 / 2 / 3 should be used as applicable.